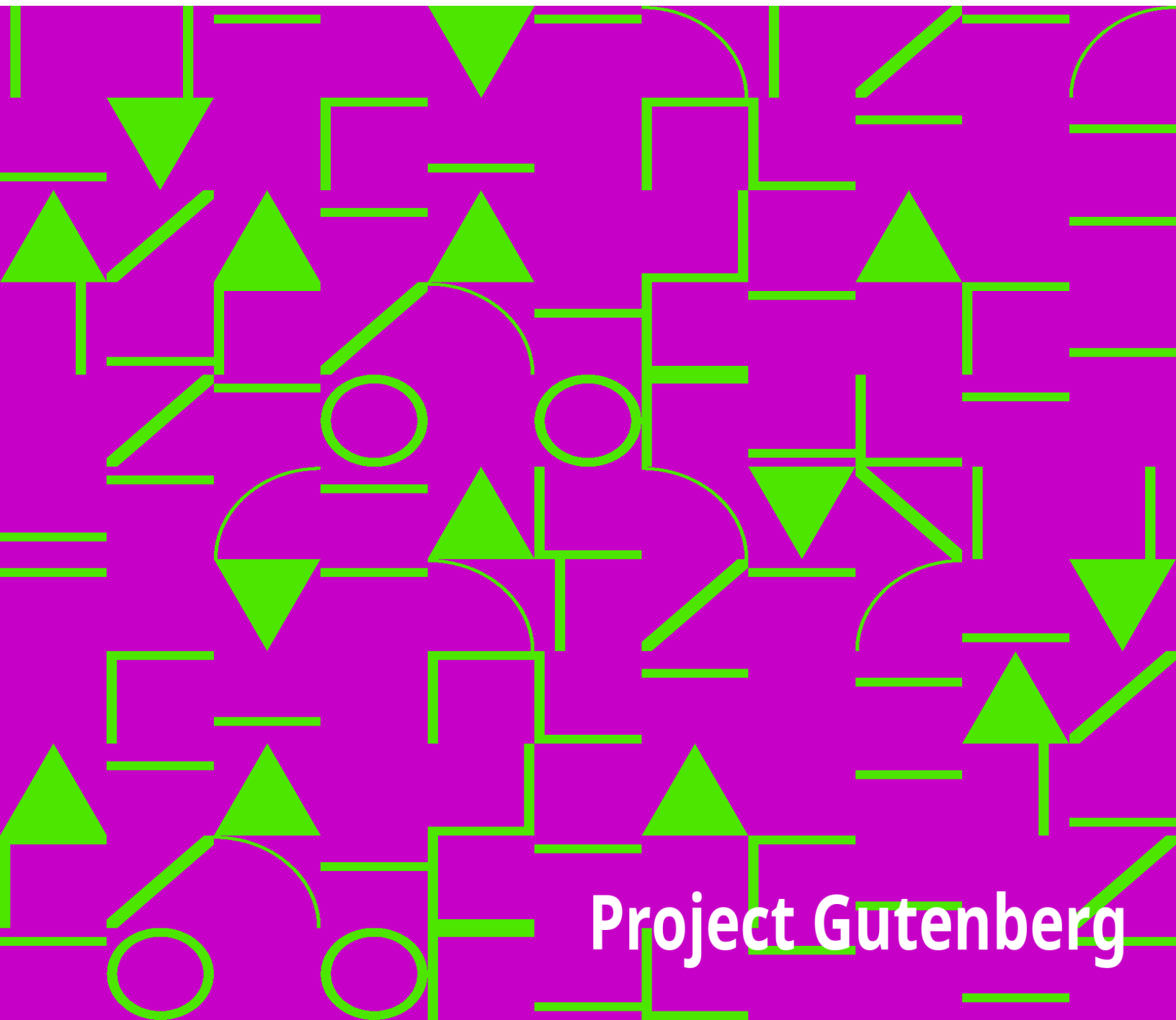


The Seigneurs of Old Canada : A Chronicle of New World Feudalism

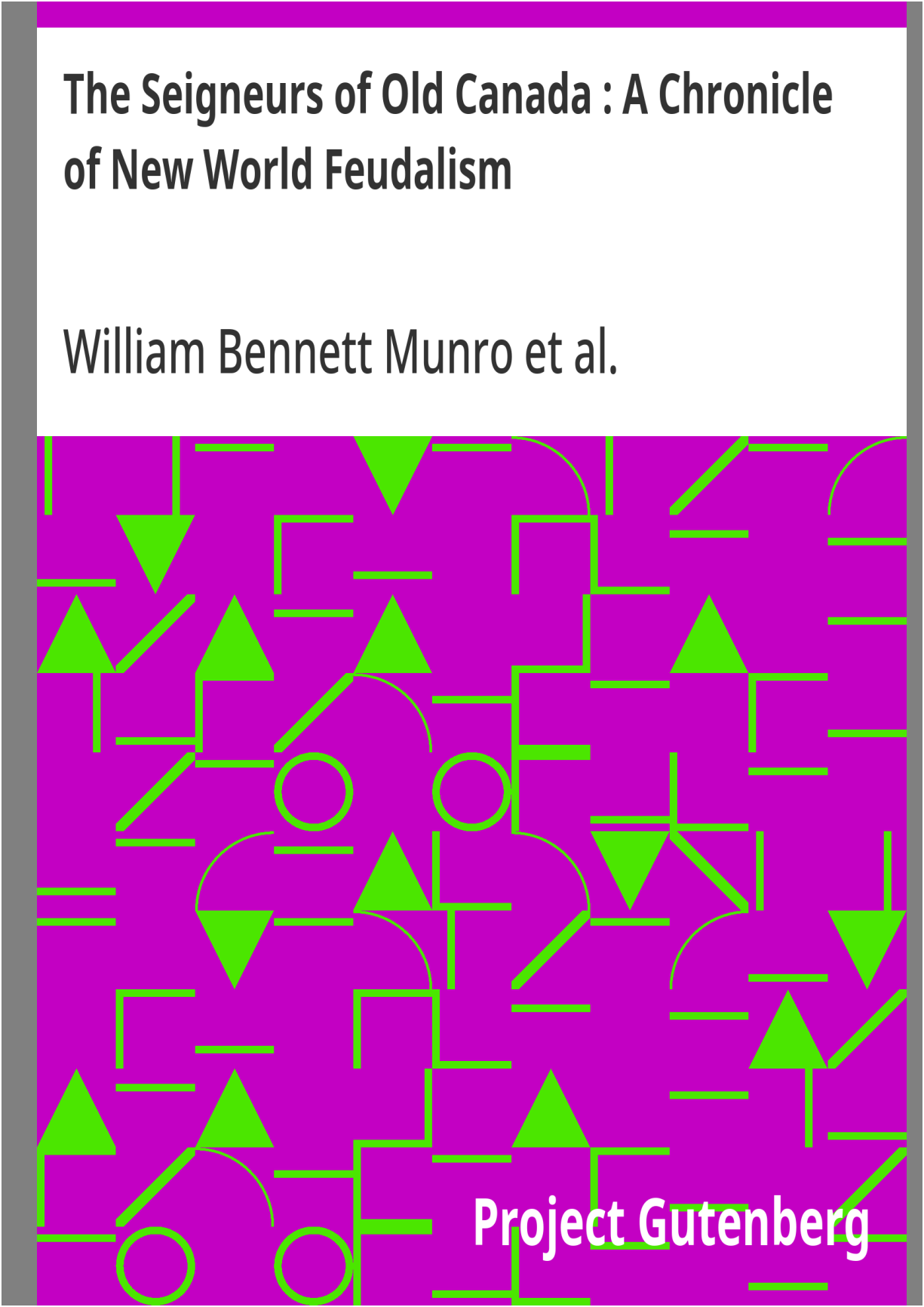
William Bennett Munro et al.



Project Gutenberg

The Seigneurs of Old Canada : A Chronicle of New World Feudalism

William Bennett Munro et al.



Project Gutenberg

The Project Gutenberg eBook of The Seigneurs of Old Canada : A Chronicle of New World Feudalism

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Seigneurs of Old Canada : A Chronicle of New World Feudalism

Author: William Bennett Munro

Editor: H. H. Langton

George McKinnon Wrong

Release date: November 1, 2003 [eBook #4655]

Most recently updated: June 13, 2024

Language: English

Original publication: Toronto: s.n., 1915

Other information and formats: www.gutenberg.org/ebooks/4655

Credits: This etext was produced by Gardner Buchanan

*** START OF THE PROJECT GUTENBERG EBOOK THE
SEIGNEURS OF OLD CANADA : A CHRONICLE OF NEW WORLD
FEUDALISM ***

CHRONICLES OF CANADA

Edited by George M. Wrong and H. H. Langton
In thirty-two volumes

Volume 5

THE SEIGNEURS OF OLD CANADA
A Chronicle of New-World Feudalism

By WILLIAM BENNETT MUNRO
TORONTO, 1915

CHAPTER I

AN OUTPOST OF EMPIRE

What would history be without the picturesque annals of the Gallic race? This is a question which the serious student may well ask himself as he works his way through the chronicles of a dozen centuries. From the age of Charlemagne to the last of the Bonapartes is a long stride down the ages; but there was never a time in all these years when men might make reckonings in the arithmetic of European politics without taking into account the prestige, the power, and even the primacy of France. There were times without number when France among her neighbours made herself hated with an undying hate; there were times, again, when she rallied them to her side in friendship and admiration. There were epochs in which her hegemony passed unquestioned among men of other lands, and there were times when a sudden shift in fortune seemed to lay the nation prostrate, with none so poor to do her reverence.

It was France that first brought an orderly nationalism out of feudal chaos; it was her royal house of Capet that rallied Europe to the rescue of the Holy Sepulchre and led the greatest of the crusades to Palestine. Yet the France of the last crusades was within a century the France of Crecy, just as the France of Austerlitz was more speedily the France of Waterloo; and men who followed the tricolour at Solferino lived to see it furled in humiliation at Sedan. No other country has had a history as prolific in triumph and

reverse, in epochs of peaceful progress and periods of civil commotion, in pageant and tragedy, in all that gives fascination to historical narrative. Happy the land whose annals are tiresome! Not such has been the fortune of poor old France.

The sage Tocqueville has somewhere remarked that whether France was loved or hated by the outside world she could not be ignored. That is very true. The Gaul has at all stages of his national history defied an attitude of indifference in others. His country has been at many times the head and at all times the heart of Europe. His hysteria has made Europe hysterical, while his sober national sense at critical moments has held the whole continent to good behaviour. For a half-dozen centuries there was never a squabble at any remote part of Europe in which France did not stand ready and willing to take a hand on the slightest opportunity. That policy, as pursued particularly by Louis XIV and the Bonapartes, made a heavy drain in brawn and brain on the vitality of the race; but despite it all, the peaceful achievements of France within her own borders continued to astonish mankind. It is this astounding vigour, this inexhaustible stamina, this unexampled recuperative power that has at all times made France a nation which, whether men admire or condemn her policy, can never be treated with indifference. It was these qualities which enabled her, throughout exhausting foreign troubles, to retain her leadership in European scholarship, in philosophy, art, and architecture; this is what has enabled France to be the grim warrior of Europe without ceasing ever to be the idealist of the nations.

It was during one of her proud and prosperous eras that France began her task of creating an empire beyond the Atlantic. At no time, indeed, was she better equipped for the work. No power of Western Europe since the days of Roman glory had possessed such facilities for conquering and governing new lands. If ever there was a land able and ready to take up the white

man's burden it was the France of the seventeenth century. The nation had become the first military power of Europe. Spain and Italy had ceased to be serious rivals. Even England, under the Stuart dynasty, tacitly admitted the military primacy of France. Nor was this superiority of the French confined to the science of war. It passed unquestioned in the arts of peace. Even Rome at the height of her power could not dominate every field of human activity. She could rule the people with authority and overcome the proud; but even her own poets rendered homage to Greece in the realms of art, sculpture, and eloquence. But France was the aesthetic as well as the military dictator of seventeenth-century Europe. Her authority was supreme, as Macaulay says, on all matters from orthodoxy in architecture to the proper cut of a courtier's clothes. Her monarchs were the first gentlemen of Europe. Her nobility set the social standards of the day. The rank and file of her people—and there were at least twenty million of them in the days of Louis Quatorze—were making a fertile land yield its full increase. The country was powerful, rich, prosperous, and, for the time being, outwardly contented.

So far as her form and spirit of government went, France by the middle of the seventeenth century was a despotism both in theory and in fact. Men were still living who could recall the day when France had a real parliament, the Estates-General as it was called. This body had at one time all the essentials of a representative assembly. It might have become, as the English House of Commons became, the grand inquest of the nation. But it did not do so. The waxing personal strength of the monarchy curbed its influence, its authority weakened, and throughout the great century of French colonial expansion from 1650 to 1750 the Estates-General was never convoked. The centralization of political power was complete. 'The State! I am the State.' These famous words imputed to Louis XIV expressed no vain boast of royal power. Speaking politically, France was a pyramid. At the apex was the Bourbon sovereign. In him all lines of authority

converged. Subordinate to him in authority, and dominated by him when he willed it, were various appointive councils, among them the Council of State and the so-called Parliament of Paris, which was not a parliament at all, but a semi-judicial body entrusted with the function of registering the royal decrees. Below these in the hierarchy of officialdom came the intendants of the various provinces —forty or more of them. Loyal agents of the crown were these intendants. They saw to it that no royal mandate ever went unheeded in any part of the king's domain. These forty intendants were the men who really bridged the great administrative gulf which lay between the royal court and the people. They were the most conspicuous, the most important, and the most characteristic officials of the old regime. Without them the royal authority would have tumbled over by its own sheer top-heaviness. They were the eyes and ears of the monarchy; they provided the monarch with fourscore eager hands to work his sovereign will. The intendants, in turn, had their underlings, known as the sub-delegates, who held the peasantry in leash. Thus it was that the administration, like a pyramid, broadened towards its base, and the whole structure rested upon the third estate, or rank and file of the people. Such was the position, the power, and administrative framework of France when her kings and people turned their eyes westward across the seas. From the rugged old Norman and Breton seaports courageous mariners had been for a long time lengthening their voyages to new coasts. As early as 1534 Jacques Cartier of St Malo had made the first of his pilgrimages to the St Lawrence, and in 1542 his associate Roberval had attempted to plant a colony there. They had found the shores of the great river to be inhospitable; the winters were rigorous; no stores of mineral wealth had appeared; nor did the land seem to possess great agricultural possibilities. From Mexico the Spanish galleons were bearing home their rich cargoes of silver bullion. In Virginia the English navigators had found a land of fair skies and fertile soil. But the hills and valleys of the northland had shouted no such greeting to the

voyageurs of Brittany. Cartier had failed to make his landfall at Utopia, and the balance-sheet of his achievements, when cast up in 1544, had offered a princely dividend of disappointment.

For a half-century following the abortive efforts of Cartier and Roberval, the French authorities had made no serious or successful attempt to plant a colony in the New World. That is not surprising, for there were troubles in plenty at home. Huguenots and Catholics were at each other's throats; the wars of the Fronde convulsed the land; and it was not till the very end of the sixteenth century that the country settled down to peace within its own borders. Some facetious chronicler has remarked that the three chief causes of early warfare were Christianity, herrings, and cloves. There is much golden truth in that nugget. For if one could take from human history all the strife that has been due either to bigotry or to commercial avarice, a fair portion of the bloodstreaks would be washed from its pages. For the time being, at any rate, France had so much fighting at home that she was unable, like her Spanish, Portuguese, Dutch, and English neighbours, to gain strategic points for future fighting abroad. Those were days when, if a people would possess the gates of their enemies, it behoved them to begin early. France made a late start, and she was forced to take, in consequence, what other nations had shown no eagerness to seize.

It was Samuel Champlain, a seaman of Brouage, who first secured for France and for Frenchmen a sure foothold in North America, and thus became the herald of Bourbon imperialism. After a youth spent at sea, Champlain engaged for some years in the armed conflicts with the Huguenots; then he returned to his old marine life once more. He sailed to the Spanish main and elsewhere, thereby gaining skill as a navigator and ambition to be an explorer of new coasts. In 1603 came an opportunity to join an expedition to the St Lawrence, and from this time to the end of his days the Brouage mariner gave his whole interest and energies to the work

of planting an outpost of empire in the New World. Champlain was scarcely thirty-six when he made his first voyage to Canada; he died at Quebec on Christmas Day, 1635. His service to the king and nation extended over three decades.

With the crew of his little vessel, the *Don de Dieu*, Champlain cast anchor on July 9, 1608, beneath the frowning natural ramparts of Cape Diamond, and became the founder of a city built upon a rock. The felling of trees and the hewing of wood began. Within a few weeks Champlain raised his rude fort, brought his provisions ashore, established relations with the Indians, and made ready with his twenty-eight followers to spend the winter in the new settlement. It was a painful experience. The winter was long and bitter; scurvy raided the Frenchmen's cramped quarters, and in the spring only eight followers were alive to greet the ship which came with new colonists and supplies. It took a soul of iron to continue the project of nation-planting after such a tragic beginning; but Champlain was not the man to recoil from the task. More settlers were landed; women and children were brought along; land was broken for cultivation; and in due course a little village grew up about the fort. This was Quebec, the centre and soul of French hopes beyond the Atlantic.

For the first twenty years of its existence the little colony had a stormy time. Some of the settlers were unruly, and gave Champlain, who was both maker and enforcer of the laws, a hard task to hold them in control. During these years the king took little interest in his new domains; settlers came slowly, and those who came seemed to be far more interested in trading with the Indians than in carving out permanent homes for themselves. Few there were among them who thought of anything but a quick competence from the profits of the fur trade, and a return to France at the earliest opportunity thereafter.

Now it was the royal idea, in so far as the busy monarch of France had any fixed purpose in the matter, that the colony should be placed upon a feudal basis—that lands should be granted and sub-granted on feudal terms. In other words, the king or his representative stood ready to give large tracts or fiefs in New France to all immigrants whose station in life warranted the belief that they would maintain the dignity of seigneurs. These, in turn, were to sub-grant the land to ordinary settlers, who came without financial resources, sent across usually at the expense of His Majesty. In this way the French authorities hoped to create a powerful military colony with a feudal hierarchy as its outstanding feature.

Feudalism is a much-abused term. To the minds of most laymen it has a rather hazy association with things despotic, oppressive, and mediaeval. The mere mention of the term conjures up those days of the Dark Ages when armour-clad knights found their chief recreation in running lances through one another; when the overworked, underfed labourers of the field cringed and cowered before every lordly whim. Most readers seem to get their notions of chivalry from Scott's *Talisman*, and their ideas on feudalism from the same author's immortal *Ivanhoe*. While scholars keep up a merry disputation as to the historical origin of the feudal system, the public imagination goes steadily on with its own curious picture of how that system lived and moved and had its being. A prolix tale of origins would be out of place in this chronicle; but even the mind of the man in the street ought to be set right as regards what feudalism was designed to do, and what in fact it did, for mankind, while civilization battled its way down the ages.

Feudalism was a system of social relations based upon land. It grew out of the chaos which came upon Europe in the centuries following the collapse of the Roman Empire. The fall of Roman power flattened the whole political structure of Western Europe, and nothing arose to take its

place. Every lord or princeling was left to depend for defence upon the strength of his own arm; so he gathered around him as many vassals as he could. He gave them land; they gave him what he most wanted,—a promise to serve and aid in time of war. The lord gave and promised to guard; the vassal took and promised to serve. Thus there was created a personal relation, a bond of mutual loyalty, wardship, and service, which bound liegeman to lord with hoops of steel. No one can read Carlyle's trenchant Past and Present without bearing away some vivid and altogether wholesome impressions concerning the essential humanity of this great mediaeval institution. It shares with the Christian Church the honour of having made life worth living in days when all else combined to make it intolerable. It brought at least a semblance of social, economic, and political order out of helpless and hopeless disorganization. It helped Europe slowly to recover from the greatest catastrophe in all her history.

But our little systems have their day, as the poet assures us. They have their day and cease to be. Feudalism had its day, from dawn to twilight a day of picturesque memory. But it did not cease to exist when its day of service was done. Long after the necessity for mutual service and protection had passed away; long after the growth of firm monarchies with powerful standing armies had established the reign of law, the feudal system kept its hold upon the social order in France and elsewhere. The obligation of military service, when no longer needed, was replaced by dues and payments. The modern cash nexus replaced the old personal bond between vassal and lord. The feudal system became the seigneurial system. The lord became the seigneur; the vassal became the censitaire or peasant cultivator whose chief function was to yield revenue for his seigneur's purse. These were great changes which sapped the spirit of the ancient institution. No longer bound to their dependants by any personal tie, the seigneurs usually turned affairs over to their bailiffs, men with hearts of adamant, who squeezed from the seigneuries every sou the hapless peasantry could yield.

These publicans of the old regime have much to answer for. They and their work were not least among the causes which brought upon the crown and upon the privileged orders that terrible retribution of the Red Terror. Not with the mediaeval institution of feudalism, but with its emaciated descendant, the seigneurial system of the seventeenth and eighteenth centuries, ought men to associate, if they must, their notions of grinding oppression and class hatred.

Out to his new colony on the St Lawrence the king sent this seigneurial system. A gross and gratuitous outrage, a characteristic manifestation of Bourbon stupidity—that is a common verdict upon the royal action. But it may well be asked: What else was there to do? The seigneurial system was still the basis of land tenure in France. The nobility and even the throne rested upon it. The Church sanctioned and supported it. The people in general, whatever their attitude towards seigneurialism, were familiar with no other system of landholding. It was not, like the *encomienda* system which Spain planted in Mexico, an arrangement cut out of new cloth for the more ruthless exploitation of a fruitful domain. The Puritan who went to Massachusetts Bay took his system of *socage* tenure along with him. The common law went with the flag of England. It was quite as natural that the Custom of Paris should follow the *fleurs-de-lis*.

There was every reason to expect, moreover, that in the New World the seigneurial system would soon free itself from those barnacles of privilege and oppression which were encrusted on its sides at home. Here was a small settlement of pioneers surrounded by hostile aborigines. The royal arm, strong as it was at home, could not well afford protection a thousand leagues away. The colony must organize and learn to protect itself. In other words, the colonial environment was very much like that in which the yeomen of the Dark Ages had found themselves. And might not its dangers be faced in the old feudal way? They were faced in this way. In the history

of French Canada we find the seigneurial system forced back towards its old feudal plane. We see it gain in vitality; we see the old personal bond between lord and vassal restored to some of its pristine strength; we see the military aspects of the system revived, and its more sordid phases thrust aside. It turned New France into a huge armed camp; it gave the colony a closely knit military organization; and, in a day when Canada needed every ounce of her strength to ward off encircling enemies both white and red, it did for her what no other system could be expected to do.

But to return to the little cradle of empire at the foot of Cape Diamond. Champlain for a score of years worked himself to premature old age in overcoming those many obstacles which always meet the pioneer. More settlers were brought; a few seigneuries were granted; priests were summoned from France; a new fort was built; and by sheer perseverance a settlement of about three hundred souls had been established by 1627. But no single individual, however untiring in his efforts, could do all that needed to be done. It was consequently arranged, with the entire approval of Champlain, that the task of building up the colony should be entrusted to a great colonizing company formed for the purpose under royal auspices. In this project the moving spirit was no less a personage than Cardinal Richelieu, the great minister of Louis XIII. Official France was now really interested. Hitherto its interest, while profusely enough expressed, had been little more than perfunctory. With Richelieu as its sponsor a company was easily organized. Though by royal decree it was chartered as the Company of New France, it became more commonly known as the Company of One Hundred Associates; for it was a co-operative organization with one hundred members, some of them traders and merchants, but more of them courtiers. Colonizing companies were the fashion of Richelieu's day. Holland and England were exploiting new lands by the use of companies; there was no good reason why France should not do likewise.

This system of company exploitation was particularly popular with the monarchs of all these European countries. It made no demands on the royal purse. If failure attended the company's ventures the king bore no financial loss. But if the company succeeded, if its profits were large and its achievements great, the king might easily step in and claim his share of it all as the price of royal protection and patronage. In both England and Holland the scheme worked out in that way. An English stock company began and developed the work which finally placed India in the possession of the British crown; a similar Dutch organization in due course handed over Java as a rich patrimony to the king of the Netherlands. France, however, was not so fortunate. True enough, the Company of One Hundred Associates made a brave start; its charter gave great privileges, and placed on the company large obligations; it seemed as though a new era in French colonization had begun. 'Having in view the establishment of a powerful military colony,' as this charter recites, the king gave to the associates the entire territory claimed by France in the western hemisphere, with power to govern, create trade, grant lands, and bestow titles of nobility. For its part the company was to send out settlers, at least two hundred of them a year; it was to provide them with free transportation, give them free lands and initial subsistence; it was to support priests and teachers—in fact, to do all things necessary for the creation of that 'powerful military colony' which His Majesty had in expectation.

It happened, however, that the first fleet the company dispatched in 1628 did not reach Canada. The ships were attacked and captured, and in the following year Quebec itself fell into English hands. After its restoration in 1632 the company, greatly crippled, resumed operations, but did very little for the upbuilding of the colony. Few settlers were sent out at all, and of these still fewer went at the company's expense. In only two ways did the company, after the first few years of its existence, show any interest in its new territories. In the first place, its officers readily grasped the opportunity

to make some profits out of the fur trade. Each year ships were sent to Quebec; merchandise was there landed, and a cargo of furs taken in exchange. If the vessel ever reached home, despite the risks of wreck and capture, a handsome dividend for those interested was the outcome. But the risks were great, and, after a time, when the profits declined, the company showed scant interest in even the trading part of its business. The other matter in which the directors of the company showed some interest was in the giving of seigneuries —chiefly to themselves. About sixty of these seigneuries were granted, large tracts all of them. One director of the company secured the whole island of Orleans as his seigniorial estate; others took generous slices on both shores of the St Lawrence. But not one of these men lifted a finger in the way of redeeming his huge fief from the wilderness. Every one seems to have had great zeal in getting hold of these vast tracts with the hope that they would some day rise in value. As for the development of the lands, however, neither the company nor its officers showed any such fervour in serving the royal cause. Thirty years after the company had taken its charter there were only about two thousand inhabitants in the colony; not more than four thousand arpents of land were under cultivation; trade had failed to increase; and the colonists were openly demanding a change of policy.

When Louis XIV came to the throne and chose Colbert as his chief minister it was deemed wise to look into the colonial situation. [Footnote: See in this Series 'The Great Intendant', chap. I.] Both were surprised and angered by the showing. It appeared that not only had the company neglected its obligations, but that its officers had shrewdly concealed their shortcomings from the royal notice. The great Bourbon therefore acted promptly and with firmness. In a couple of notable royal decrees he read the directors a severe lecture upon their avarice and inaction, took away all the company's powers, confiscated to the crown all the seigneuries which the directors had granted to themselves, and ordered that the colony should

thenceforth be administered as a royal province. By his later actions the king showed that he meant what his edicts implied. The colony passed under direct royal government in 1663, and virtually remained there until its surrender into English hands an even century later.

Louis XIV was greatly interested in Canada. From beginning to end of his long administration he showed this interest at every turn. His officials sent from Quebec their long dispatches; the patient monarch read them all, and sent by the next ship his budget of orders, advice, reprimand, and praise. As a royal province, New France had for its chief official a governor who represented the royal dignity and power. The governor was the chief military officer, and it was to him that the king looked for the proper care of all matters relating to the defence and peace of New France. Then there was the Sovereign Council, a body made up of the bishop, the intendant, and certain prominent citizens of the colony named by the king on the advice of his colonial representatives. This council was both a law-making and a judicial body. It registered and published the royal decrees, made local regulations, and acted as the supreme court of the colony. But the official who loomed largest in the purely civil affairs of New France was the intendant. He was the overseas apostle of Bourbon paternalism, and as his commission authorized him to 'order all things as he may think just and proper,' the intendant never found much opportunity for idleness.

Tocqueville, shrewdest among historians of pre-revolutionary France, has somewhere pointed out that under the old regime the administration took the place of Providence. It sought to be as omniscient and as omnipotent; its ways were quite as inscrutable. In this policy the intendant was the royal man-of-all-work. The king spoke and the intendant transformed his words into action. As the sovereign's great interest in the colony moved him to speak often, the intendant's activity was prodigious. Ordinances, edicts, judgments and decrees fairly flew from his pen like sparks from an anvil.

Nothing that needed setting aright was too inconsequential for a paternal order. An ordinance establishing a system of weights and measures for the colony rubs shoulders with another inhibiting the youngsters of Quebec from sleigh-riding down its hilly thoroughfares in icy weather. Printed in small type these decrees of the intendant's make up a bulky volume, the present-day interest of which is only to show how often the hand of authority thrust itself into the daily walk and conversation of Old Canada.

From first to last there were a dozen intendants of New France. Jean Talon, whose prudence and energy did much to set the colony on its feet, was the first; Fracois Bigot, the arch-plunderer of public funds, who did so much to bring the land to disaster, was the last. Between them came a line of sensible, hard-working, and loyal men who gave the best that was in them to the uphill task of making the colony what their royal master wanted it to be. Unfortunate it is that Bigot's astounding depravity has led too many readers and writers of Canadian history to look upon the intendency of New France as a post held chiefly by rascals. As a class no men served the French crown more steadfastly or to better purpose.

Now it was to the intendant, in Talon's time, that the king committed the duty of granting seigneuries and of supervising the seigneurial system in operation. But, later, when Count Frontenac, the iron governor of the colony, came into conflict with the intendant on various other matters, he made complaint to the court at Versailles that the intendant was assuming too much authority. A royal decree therefore ordered that for the future these grants should be made by the governor and intendant jointly. Thenceforth they were usually so made, although in some cases the intendant disregarded the royal instructions and signed the title-deeds alone; and it appears that in all cases he was the main factor in determining who should get seigneuries and who should not. The intendant, moreover, made himself the chief guardian of the relations between the seigneurs and their

seigneurial tenants. When the seigneurs tried to exact in the way of honours, dues, and services any more than the laws and customs of the land allowed, the watchful intendant promptly checkmated them with a restrictive decree. Or when some seigneurial claim, even though warranted by law or custom, seemed to be detrimental to the general wellbeing of the people, he regularly brought the matter to the attention of the home government and invoked its intervention. In all such matters he was praetor and tribune combined. Without the intendancy the seigneurial system would soon have become an agent of oppression, for some Canadian seigneurs were quite as avaricious as their friends at home.

The heyday of Canadian feudalism was the period from 1663 to about 1750. During this interval nearly three hundred fiefs were granted. Most of them went to officials of the civil administration, many to retired military officers, many others to the Church and its affiliated institutions, and some to merchants and other lay inhabitants of the colony. Certain seigneurs set to work with real zeal, bringing out settlers from France and steadily getting larger portions of their fiefs under cultivation. Others showed far less enterprise, and some no enterprise at all. From time to time the king and his ministers would make inquiry as to the progress being made. The intendant would reply with a memoire often of pitiless length, setting forth the facts and figures. Then His Majesty would respond with an edict ordering that all seigneurs who did not forthwith help the colony by putting settlers on their lands should have their grants revoked. But the seigneurs who were most at fault in this regard were usually the ones who had most influence in the little administrative circle at Quebec. Hence the king's orders were never enforced to the letter, and sometimes not enforced at all. Unlike the Parliament of Paris, the Sovereign Council at Quebec never refused to register a royal edict. What would have happened in the event of its doing so is a query that legal antiquarians might find difficult to answer. Even a sovereign decree bearing the Bourbon sign-manual could not gain the force

of law in Canada except by being spread upon the council's records. In France the king could come clattering with his escort to the council hall and there, by his so termed 'bed of justice,' compel the registration of his decrees. But the Chateau of St Louis at Quebec was too far away for any such violent procedure.

The colonial council never sought to find out what would follow an open defiance of the royal wishes. It had a safer plan. Decrees were always promptly registered; but when they did not suit the councillors they were just as promptly pigeon-holed, and the people of the colony were thus left in complete ignorance of the new regulations. On one occasion the intendant Raudot, in looking over the council records for legal light on a case before him, found a royal decree which had been registered by the council some twenty years before, but not an inkling of which had ever reached the people to whom it had conveyed new rights against their seigneurs. 'It was the interest of the attorney-general as a seigneur, as it was also the interest of other councillors who are seigneurs, that the provisions of this decree should never be made public,' is the frank way in which the intendant explained the matter in one of his dispatches to the king. The fact is that the royal arm, supremely powerful at home, lost a good deal of its strength when stretched across a thousand leagues of ocean. If anything happened amiss after the ships left Quebec in the late summer, there was no regular means of making report to the king for a full twelvemonth. The royal reply could not be had at the earliest until the ensuing spring; if the king's advisers desired to look into matters fully it sometimes happened that another year passed before the royal decision reached Quebec. By that time matters had often righted themselves, or the issue had been forgotten. At any rate the direct influence of the crown was much less effective than it would have been had the colony been within easy reach. The governor and intendant were accordingly endowed by the force of circumstances with large discretionary powers. When they agreed it was possible to order

things about as they chose. When they disagreed on any project the matter went off to the king for decision, which often meant that it was shelved indefinitely.

The administration of New France was not efficient. There were too many officials for the size and needs of the colony. Their respective spheres of authority were too loosely defined. Nor did the crown desire to have every one working in harmony. A moderate amount of friction— provided it did not wholly clog the wheels of administration —was not deemed an unmixed evil. It served to make each official a tale-bearer against his colleague, so that the home authorities might count on getting all sides to every story. The financial situation, moreover, was always precarious. At no time could New France pay its own way; every second dispatch from the governor and intendant asked the king for money or for things that cost money. Louis XIV was astonishingly generous in the face of so many of these demands upon his exchequer, but the more he gave the more he was asked to give. When the stress of European wars curtailed the king's bounty the colonial authorities began to issue paper money; the issues were gradually increased; the paper soon depreciated, and in its closing years the colony fairly wallowed in the slough of almost worthless fiat currency.

In addition to meeting the annual deficit of the colony the royal authorities encouraged and assisted emigration to New France. Whole shiploads of settlers were at times gathered and sent to Quebec. The seigneurs, by the terms of their grants, should have been active in this work; but very few of them took any share in it. Nearly the entire task of applying a stimulus to emigration was thrust on the king and his officials at home. Year after year the governor and intendant grew increasingly urgent in repeated requests for more settlers, until a rebuke arrived in a suggestion that the king was not minded to depopulate France in order to people his colonies. The influx of settlers was relatively large during the years 1663-

72. Then it dwindled perceptibly, although immigrants kept coming year by year so long as war did not completely cut off communication with France. The colony gained bravely, moreover, through its own natural increase, for the colonial birth-rate was high, large families being everywhere the rule. In 1673 the population of New France was figured at about seven thousand; in 1760 it had reached nearly fifty thousand.

The development of agriculture on the seigneurial lands did not, however, keep pace with growth in population. It was hard to keep settlers to the prosaic task of tilling the soil. There were too many distractions, chief among them the lure of the Indian trade. The traffic in furs offered large profits and equally large risks; but it always yielded a full dividend of adventure and hair-raising experience. The fascination of the forest life gripped the young men of the colony, and they left for the wilderness by the hundred. There is a roving strain in Norman blood. It brought the Norseman to France and Sicily; it took his descendants from the plough and sent them over the waters of the New World, from the St Lawrence to the Lakes and from the Lakes to the Gulf of Mexico. Church and state joined hands in attempt to keep them at home. Royal decrees of outlawry and ecclesiastical edicts of excommunication were issued against them. Seigneurs stipulated that their lands would be forfeited unless so many arpents were put under crop each year. But all to little avail. So far as developing the permanent resources of the colony were concerned these *coureurs de bois* might just as well have remained in France. Once in a while a horde of them descended to Quebec or Montreal, disposed of their furs to merchants, filled themselves with brandy and turned bedlam loose in the town. Then before the authorities could unwind the red tape of legal procedure they were off again to the wilds.

This Indian trade, despite the large and valuable cargoes of beaver pelts which it enabled New France to send home, was a curse to the colony. It

drew from husbandry the best blood of the land, the young men of strength, initiative, and perseverance. It wrecked the health and character of thousands. It drew the Church and the civil government into profitless quarrels. The bishop flayed the governor for letting this trade go on. The governor could not, dared not, and sometimes did not want to stop it. At any rate it was a great obstacle to agricultural progress. With it and other distractions in existence the clearing of the seigneuries proceeded very slowly. At the close of French dominion in 1760 the amount of cultivated land was only about three hundred thousand arpents, or about five acres for every head of population—not a very satisfactory showing for a century of Bourbon imperialism in the St Lawrence valley.

Yet the colony, when the English conquerors came upon it in 1759, was far from being on its last legs. It had overcome the worst of its obstacles and had created a foundation upon which solid building might be done. Its people had reached the stage of rude but tolerable comfort. Its highways of trade and intercourse had been freed from the danger of Indian raids. It had some small industries and was able to raise almost the whole of its own food-supply. The traveller who passed along the great river from Quebec to Montreal in the early autumn might see, as Peter Kalm in his *Travels* tells us he saw, field upon field of waving grain extending from the shores inward as far as the eye could reach, broken only here and there by tracts of meadow and woodland. The outposts of an empire at least had been established.

CHAPTER II

GENTLEMEN OF THE WILDERNESS

A good many people, as Robert Louis Stevenson once assured us, have a taste for 'heroic forms of excitement.' And it is well for the element of interest in history that this has been so at all ages and among all races of men. The most picturesque and fascinating figures in the recorded annals of nations have been the pioneers,—the men who have not been content to do what other men of their day were doing. Without them and their achievements history might still be read for information, but not for pleasure; it might still instruct, but it would hardly inspire.

In the narratives of colonization there is ample evidence that Frenchmen of the seventeenth century were not lacking in their thirst for excitement, whether heroic or otherwise. Their race furnished the New World with explorers and forest merchants by the hundred. The most venturesome voyageurs, the most intrepid traders, and the most untiring missionaries were Frenchmen. No European stock showed such versatility in its relations with the aborigines; none proved so ready to bear all manner of hardship and discomfort for the sake of the thrills which came from setting foot where no white man had ever trod. The Frenchman of those days was no weakling either in body or in spirit; he did not shrink from privation or danger; in tasks requiring courage and fortitude he was ready to lead the way. When he came to the New World he wanted the sort of life that would

keep him always on his mettle, and that could not be found within the cultivated borders of seigneurie and parish. Hence it was that Canada in her earliest years found plenty of pioneers, but not always of the right type. The colony needed yeomen who would put their hands to the plough, who would become pioneers of agriculture. Such, however, were altogether too few, and the yearly harvest of grain made a poor showing when compared with the colony's annual crop of beaver skins. Yet the yeoman did more for the permanent upbuilding of the land than the trader, and his efforts ought to have their recognition in any chronicle of colonial achievement.

It was in the mind of the king that 'persons of quality' as well as peasants should be induced to make their homes in New France. There were enough landless gentlemen in France; why should they not be used as the basis of a seigneurial nobility in the colony? It was with this idea in view that the Company of One Hundred Associates was empowered not only to grant large tracts of land in the wilderness, but to give the rank of gentilhomme to those who received such fiefs. Frenchmen of good birth, however, showed no disposition to become resident seigneurs of New France during the first half-century of its history. The role of a 'gentleman of the wilderness' did not appeal very strongly even to those who had no tangible asset but the family name. Hence it was that not a half-dozen seigneurs were in actual occupancy of their lands on the St Lawrence when the king took the colony out of the company's hands in 1663.

But when Talon came to the colony as intendant in 1665 this situation was quickly changed. Uncleared seigneuries were declared forfeited. Actual occupancy was made a condition of all future grants. The colony must be built up, if at all, by its own people. The king was urged to send out settlers, and he responded handsomely. They came by hundreds. The colony's entire population, including officials, priests, traders, seigneurs, and habitants, together with women and children, was about three thousand, according to a

census taken a year after Talon arrived. Two years later, owing largely to the intendant's unceasing efforts, it had practically doubled. Nothing was left undone to coax emigrants from France. Money grants and free transportation were given with unwonted generosity, although even in the early years of his reign the coffers of Louis Quatorze were leaking with extravagance at every point. At least a million livres [Footnote: The livre was practically the modern franc, about twenty cents.] in these five years is a sober estimate of what the royal treasury must have spent in the work of colonizing Canada.

No campaign for immigrants in modern days has been more assiduously carried on. Officials from Paris searched the provinces, gathering together all who could be induced to go. The intendant particularly asked that women be sent to the colony, strong and vigorous peasant girls who would make suitable wives for the habitants. The king gratified him by sending whole shiploads of them in charge of nuns. As to who they were, and where they came from, one cannot be altogether sure. The English agent at Paris wrote that they were 'lewd strumpets gathered up by the officers of the city,' and even the saintly Mere Marie de l'Incarnation confessed that there was beaucoup de canaille among them. La Hontan has left us a racy picture of their arrival and their distribution among the rustic swains of the colony, who scrimmaged for points of vantage when boatloads of women came ashore from the ships. [Footnote: Another view will be found in *The Great Intendant* in this Series, chap. IV.]

The male settlers, on the other hand, came from all classes and from all parts of France. But Normandy, Brittany, Picardy, and Perche afforded the best recruiting grounds; from all of them came artisans and sturdy peasants. Normandy furnished more than all the others put together, so much so that Canada in the seventeenth century was more properly a Norman than a French colony. The colonial church registers, which have been kept with

scrupulous care, show that more than half the settlers who came to Canada during the decade after 1664. were of Norman origin; while in 1680 it was estimated that at least four-fifths of the entire population of New France had some Norman blood in their veins. Officials and merchants came chiefly from Paris, and they coloured the life of the little settlement at Quebec with a Parisian gaiety; but the Norman dominated the fields—his race formed the backbone of the rural population.

Arriving at Quebec the incoming settlers were met by officials and friends. Proper arrangements for quartering them until they could get settled were always made beforehand. If the new-comer were a man of quality, that is to say, if he had been anything better than a peasant at home, and especially if he brought any funds with him, he applied to the intendant for a seigneurie. Talon was liberal in such matters. He stood ready to give a seigneurial grant to any one who would promise to spend money in clearing his land. This liberality, however, was often ill-requited. Immigrants came to him and gave great assurances, took their title-deeds as seigneurs, and never upturned a single foot of sod. In other cases the new seigneurs set zealously to work and soon had good results to show.

In size these seigneuries varied greatly. The social rank and the reputed ability of the seigneur were the determining factors. Men who had been members of the noblesse in France received tracts as large as a Teutonic principality, comprising a hundred square miles or more. Those of less pretentious birth and limited means had to be content with a few thousand arpents. In general, however, a seigneurie comprised at least a dozen square miles, almost always with a frontage on the great river and rear limits extending up into the foothills behind. The metes and bounds of the granted lands were always set forth in the letters-patent or title-deeds; but almost invariably with utter vagueness and ambiguity. The territory was not surveyed; each applicant, in filing his petition for a seigneurie, was asked to

describe the tract he desired. This description, usually inadequate and inaccurate, was copied in the deed, and in due course hopeless confusion resulted. It was well that most seigneurs had more land than they could use; had it not been for this their lawsuits over disputed boundaries would have been unending.

Liberal in the area of land granted to the new seigneurs, the crown was also liberal in the conditions exacted. The seigneur was asked for no initial money payment and no annual land dues. When his seigneurie changed owners by sale or by inheritance other than in direct descent, a mutation fine known as the quint was payable to the public treasury. This, as its name implies, amounted to one-fifth of the seigneurie's value; but it rarely accrued, and even when it did the generous monarch usually rebated a part or all of it. Not a single sou was ever exacted by the crown from the great majority of the seigneurs. If agriculture made slow headway in New France it was not because officialdom exploited the land to its own profit. Never were the landowners of a new country treated more generously or given greater incentive to diligence.

But if the king did not ask the seigneurs for money he asked for other things. He required, in the first place, that each should render fealty and homage with due feudal ceremony to his official representative at Quebec. Accordingly, the first duty of the seigneur, after taking possession of his new domain, was to repair without sword or spur to the Chateau of St Louis at Quebec, a gloomy stone structure that frowned on the settlement from the heights behind. Here, on bended knee before the governor, the new liegeman swore fealty to his lord the king and promised to render due obedience in all lawful matters. This was one of the things which gave a tinge of chivalry to Canadian feudalism, and helped to make the social life of a distant colony echo faintly the pomp and ceremony of Versailles. The

seigneur, whether at home or beyond the seas, was never allowed to forget the obligation of personal fidelity imposed upon him by his king.

A more arduous undertaking next confronted the new seigneur. It was not the royal intention that he should fold his talent in a napkin. On the contrary, the seigneur was endowed with his rank and estate to the sole end that he should become an active agent in making the colony grow. He was expected to live on his land, to level the forest, to clear fields, and to make two blades of grass grow where one grew before. He was expected to have his seignury surveyed into farms, or en censive holdings, and to procure, as quickly as might be, settlers for these farms. It was highly desirable, of course, that the seigneurs should lend a hand in encouraging the immigration of people from their old homes in France. Some of them did this. Robert Giffard, who held the seignury of Beauport just below Quebec, was a notable example. The great majority of the seigneurs, however, made only half-hearted attempts in this direction, and their efforts went for little or nothing. What they did was to meet, on arrival at Quebec, the shiploads of settlers sent out by the royal officers. There they gathered about the incoming vessel, like so many land agents, each explaining what advantages in the way of a good location and fertile soil he had to offer. Those seigneurs who had obtained tracts near the settlement at Quebec had, of course, a great advantage in all this, for the new-comers naturally preferred to set up their homes where a church would be near at hand, and where they could be in touch with other families during the long winters. Consequently the best locations in all the seigneuries near Quebec were soon taken, and then settlers had to take lands more remote from the little metropolis of the colony. They went to the seigneuries near Montreal and Three Rivers; when the best lands in these areas were taken up, they dispersed themselves along the whole north shore of the St Lawrence from below the Montmorency to its junction with the Ottawa. The north shore having been well dotted with the whitewashed homes, the south shore came

in for its due share of attention, and in the last half-century of the French regime a good many settlers were provided for in that region.

For a time the immigrants found little or no difficulty in obtaining farms on easy terms. Seigneurs were glad to give them land without any initial payment and frequently promised exemption from the usual seigneurial dues for the first few years. In any case these dues and services, which will be explained more fully later on, were not burdensome. Any settler of reasonable industry and intelligence could satisfy these ordinary demands without difficulty. Translated into an annual money rental they would have amounted to but a few sous per acre. But this happy situation did not long endure. As the settlers continued to come, and as children born in the colony grew to manhood, the demand for well-situated farms grew more brisk, and some of the seigneurs found that they need no longer seek tenants for their lands. On the contrary, they found that men desiring land would come to them and offer to pay not only the regular seigneurial dues, but an entry fee or bonus in addition. The best situated lands, in other words, had acquired a margin of value over lands not so well situated, and the favoured seigneurs turned this to their own profit. During the early years of the eighteenth century, therefore, the practice of exacting a *prix d'entree* became common; indeed it was difficult for a settler to get the lands he most desired except by making such payment. As most of the newcomers could not afford to do this they were often forced to make their homes in unfavourable, out-of-the-way places, while better situations remained untouched by axe or plough.

The watchful attention of the intendant Raudot, however, was in due course drawn to this difficulty. It was a development not at all to his liking. He thought it would be frowned upon by the king and his ministers if properly brought to their notice, and in 1707 he wrote frankly to his superiors concerning it. First of all he complained that 'a spirit of business

speculation, which has always more of cunning and chicane than of truth and righteousness in it,' was finding its way into the hearts of the people. The seigneurs in particular, he alleged, were becoming mercenary; they were taking advantage of technicalities to make the habitants pay more than their just dues. In many cases settlers had taken up lands on the merely oral assurances of the seigneurs; then when they got their deeds in writing these deeds contained various provisions which they had not counted upon and which were not fair. 'Hence,' declared the intendant, 'a great abuse has arisen, which is that the habitants who have worked their farms without written titles have been subjected to heavy rents and dues, the seigneurs refusing to grant them regular deeds except on onerous conditions; and these conditions they find themselves obliged to accept, because otherwise they will have their labour for nothing.'

The royal authorities paid due heed to these complaints, and, although they did not accept all Raudot's suggestions, they proceeded to provide corrective measures in the usual way. This way, of course, was by the issue of royal edicts. Two of these decrees reached the colony in the due course of events. They are commonly known as the Arrets of Marly, and bear date July 11, 1711. Both were carefully prepared and their provisions show that the royal authorities understood just where the entire trouble lay.

The first arret went direct to the point. 'The king has been informed,' it recites, 'that there are some seigneurs who refuse under various pretexts to grant lands to settlers who apply for them, preferring rather the hope that they may later sell these lands.' Such attitude, the decree went on to declare, was absolutely repugnant to His Majesty's intentions, and especially 'unfair to incoming settlers who thus find land less open to free settlement in situations best adapted for agriculture.' It was, therefore, ordered that if any applicant for lands should be by any seigneur denied a reasonable grant on the customary terms, the intendant should forthwith step in and issue a deed

on his own authority. In this case the annual payments were to go to the colonial treasury, and not to the seigneur. This decree simplified matters considerably. After it became the law of the colony no one desiring land from a seigneur's ungranted domain was expected to offer anything above the customary annual dues and services. The seigneur had no legal right to demand more. By one stroke of the royal pen the Canadian seigneur had lost all right of ownership in his seigneurie; he became from this time on a trustee holding lands in trust for the future immigrant and for the sons of the people. However his lands might grow in value, the seigneur, according to the letter of the law, could exact no more from new tenants than from those who had first settled upon his estate. This was a revolutionary change; it put the seigneurial system in Canada on a basis wholly different from that in France; it proved that the king regarded the system as useful only in so far as it actively contributed to the progress of the colony. Where it stood in the way of progress he was prepared to apply the knife even at its very vitals.

Unfortunately for those most concerned, however, the royal orders were not allowed to become common knowledge in the colony. The decree was registered and duly promulgated; then quickly forgotten. Few of the habitants seem to have ever heard of it; newcomers, of course, knew nothing of their rights under its provisions. Seigneurs continued to get special terms for advantageous locations, the applicants for lands being usually quite willing to pay a bonus whenever they could afford to do so. Now and then some one, having heard of the royal arret, would appeal to the intendant, whereupon the seigneur made haste to straighten out things satisfactorily. Then, as now, the presumption was that the people knew the law, and were in a position to take advantage of its protecting features; but the agencies of information were so few that the provisions of a new decree rarely became common property.

The second of the two arrets of Marly was designed to uphold the hands of those seigneurs who were trying to do right. The king and his ministers were convinced, from the information which had come to them, that not all the 'cunning and chicane' in land dealings came from the seigneurs. The habitants were themselves in part to blame. In many cases settlers had taken good lands, had cut down a few trees, thinking thereby to make a technical compliance with requirements, and were spending their energies in the fur trade. It was the royal opinion that real homesteading should be insisted upon, and he decreed, accordingly, that wherever a habitant did not make a substantial start in clearing his farm, the land should be forfeited in a year to the seigneur. This arret, unlike its companion decree, was rigidly enforced. The council at Quebec was made up of seigneurs, and to the seigneurs as a whole its provisions were soon made known. During the twenty years following the issue of the decree of 1711 the intendant was called upon to declare the forfeiture of over two hundred farms, the owners of which had not fulfilled the obligation to establish a hearth and home (*tenir feu et lieu*) upon the lands. As a spur to the slothful this decree appears to have had a wholesome effect; although, in spite of all that could be done, the agricultural development of the colony proceeded with exasperating slowness. Each year the governor and intendant tried in their dispatches to put the colony's best foot forward; every autumn the ships took home expressions of achievement and hope; but between the lines the patient king must have read much that was discouraging.

It may be well at this point to take a general survey of the colonial seigneuries, noting what progress had been made. The seigneurial system had been a half-century in full flourish—what had it accomplished? That is evidently just what the home authorities wanted to know when they arranged for a topographical and general report on the seigneuries in 1712. This investigation, on the intendant's advice, was entrusted to an engineer, Gedeon de Catalogne. Catalogne, who was a native of Bearn, born in 1662,

came to Canada about the year 1685. He was engaged on the improvement of the colonial fortifications until the intendant set him to work on a survey of the seigneuries. The work occupied two or three years, in the course of which he prepared three excellent maps showing the situation and extent of all the seigneuries in the districts of Quebec, Three Rivers, and Montreal. The first two maps have been preserved; that of the district of Montreal was probably lost at sea on its way to France. With the two maps Catalogne presented a long report on the ownership, resources, and general progress of the seigneuries. Ninety-three of them are dealt with in all, the report giving in each case the situation and extent of the tract, the nature of the soil and its adaptability to different products, the mineral deposits and timber, the opportunities for industry and trade, the name and rank of the seigneur, the way in which he had come into possession of the seigneurie, the provisions made for religious worship, and various other matters.

Catalogne's report shows that in 1712 practically all the lands bordering on both sides of the St Lawrence from Montreal to some distance below Quebec had been made into seigneuries. Likewise the islands in the river and the lands on both sides of the Richelieu had been apportioned either to the Church orders or to lay seigneurs. All these tracts were, for administrative purposes, grouped into the three districts of Montreal, Three Rivers, and Quebec; the intendant himself took direct charge of affairs at Quebec, but in the other two settlements he was represented by a subordinate. Each district, likewise, had its own royal court, and from the decisions of these tribunals appeals might be carried before the Superior Council, which held its weekly sessions at the colonial capital.

On the island of Montreal was the most important of the seigneuries in the district bearing its name. It was held by the Seminary of St Sulpice, and its six parishes contained in 1712 a population of over two thousand. The soil of the island was fertile and the situation was excellent for trading

purposes, for it commanded the routes usually taken by the fur flotillas both from the Great Lakes and from the regions of Georgian Bay. The lands were steadily rising in value, and this seigneurie soon became one of the most prosperous areas of the colony. The seminary also owned the seigneurie of St Sulpice on the north shore of the river, some little distance below the island.

Stretching farther along this northern shore were various large seigneuries given chiefly to officers or former officers of the civil government, and now held by their heirs. La Valterie, Lanoraie, and Berthier-en-Haut, were the most conspicuous among these riparian fiefs. Across the stream lay Chateauguay and Longueuil, the patrimony of the Le Moynes; likewise the seigneuries of Varennes, Vercheres, Contrecoeur, St Ours, and Sorel. All of these were among the so-termed military seigneuries, having been originally given to retired officers of the Carignan regiment. A dozen other seigneurial properties, bearing names of less conspicuous interest, scattered themselves along both sides of the great waterway. Along the Richelieu from its junction with the St Lawrence to the outer limits of safe settlement in the direction of Lake Champlain, a number of seigneurial grants had been effected. The historic fief of Sorel commanded the confluence of the rivers; behind it lay Chambly and the other properties of the adventurous Hertels. These were settled chiefly by the disbanded Carignan soldiers, and it was their task to guard the southern gateway.

The coming of this regiment, its work in the colony, and its ultimate settlement, is an interesting story, illustrating as it does the deep personal interest which the Grand Monarque displayed in the development of his new dominions. For a long time prior to 1665 the land had been scourged at frequent intervals by Iroquois raids. Bands of marauding redskins would creep stealthily upon some outlying seigneurie, butcher its people, burn

everything in sight, and then decamp swiftly to their forest lairs. The colonial authorities, helpless to guard their entire frontiers and unable to foretell where the next blow would fall, endured the terrors of this situation for many years. In utter desperation they at length called on the king for a regiment of trained troops as the nucleus of a punitive expedition. The Iroquois would be tracked to their own villages and there given a memorable lesson in letters of blood and iron. The king, as usual, complied, and on a bright June day in 1665 a glittering cavalcade disembarked at Quebec. The Marquis de Tracy with two hundred gaily caparisoned officers and men of the regiment of Carignan-Salieres formed this first detachment; the other companies followed a little later. Quebec was like a city relieved from a long siege. Its people were in a frenzy of joy.

The work which the regiment had been sent out to do was soon begun. The undertaking was more difficult than had been anticipated, and two expeditions were needed to accomplish it; but the Iroquois were thoroughly chastened, and by the close of 1666 the colony once more breathed easily. How long, however, would it be permitted to do so? Would not the departure of the regiment be a signal to the Mohawks that they might once again raid the colony's borders with impunity? Talon thought that it would, hence he hastened to devise a plan whereby the Carignans might be kept permanently in Canada. To hold them there as a regular garrison was out of the question; it would cost too much to maintain six hundred men in idleness. So the intendant proposed to the king that the regiment should be disbanded at Quebec, and that all its members should be given inducements to make their homes in the colony.

Once more the king assented. He agreed that the officers of the regiment should be offered seigneuries, and provided with funds to make a start in improving them. For the rank and file who should prove willing to take lands within the seigneuries of the officers the king consented to provide a

year's subsistence and a liberal grant in money. The terms proved attractive to some of the officers and to most of the men. Accordingly, arrangements were at once made for getting them established on their new estates. Just how many permanent settlers were added to the colonial population in this way is not easy to ascertain; but about twenty-five officers (chiefly captains and lieutenants) together with nearly four hundred men volunteered to stay. Most of the non-commissioned officers and men showed themselves to be made of good stuff; their days were long in the land, and their descendants by the thousand still possess the valley of the Richelieu. But the officers, good soldiers though they were, proved to be rather faint-hearted pioneers. The task of beating swords into ploughshares was not altogether to their tastes. Hence it was that many of them got into debt, mortgaged their seigneuries to Quebec or Montreal merchants, soon lost their lands, and finally drifted back to France.

When Talon arranged to have the Carignans disbanded in Canada he decided that they should be given lands in that section of the colony where they would be most useful in guarding New France at its most vulnerable point. This weakest point was the region along the Richelieu between Lake Champlain and the St Lawrence. By way of this route would surely come any English expedition sent against New France, and this likewise was the portal through which the Mohawks had already come on their errands of massacre. If Canada was to be safe, this region must become the colony's mailed fist, ready to strike in repulse at an instant's notice. All this the intendant saw very plainly, and he was wise in his generation. Later events amply proved his foresight. The Richelieu highway was actually used by the men of New England on various subsequent expeditions against Canada, and it was the line of Mohawk incursion so long as the power of this proud redskin clan remained unbroken. At no time during the French period was this region made entirely secure; but Talon's plan made the

Richelieu route much more difficult for the colony's foes, both white and red, than it otherwise would have been.

Here was an interesting experiment in Roman imperial colonization repeated in the New World. When the empire of the Caesars was beginning to give way before the oncoming barbarians of Northern Europe, the practice of disbanding legions on the frontier and having them settle on the lands was adopted as a means of securing defence, without the necessity of spending large sums on permanent outpost garrisons. The retired soldier was a soldier still, but practically self-supporting in times of peace. These *praedia militaria* of the Romans gave Talon his idea of a military cantonment along the Richelieu, and in broaching his plans to the king he suggested that the 'practice of the politic and warlike Romans might be advantageously used in a land which, being so far away from its monarch, must trust for existence to the strength of its own arms.'

All who took lands in this region, whether seigneurs or habitants, were bound to serve in arms at the call of the king, although this obligation was not expressly provided in the deeds of land. Never was a call to arms without response. These military settlers and their sons after them were only too ready to gird on the sword at every opportunity. It was from this region that expeditions quietly set forth from time to time towards the borders of New England, and leaped like a lynx from the forest upon some isolated hamlet of Massachusetts or New York. The annals of Deerfield, Haverhill, and Schenectady bear to this day their tales of the Frenchman's ferocity, and all New England hated him with an unyielding hate. In guarding the southern portal he did his work with too much zeal, and his stinging blows finally goaded the English colonies to a policy of retaliation which cost the French very dearly.

But to return to the seigneuries along the river. The district of Three Rivers, extending on the north shore of the St Lawrence from Berthier-en-Haut to Grondines, and on the south from St Jean-Deschaillons east to Yamaska, was but sparsely populated when Catalogne prepared to report in 1712. Prominent seigneuries in this region were Pointe du Lac or Tonnancour, the estate of the Godefroys de Tonnancour; Cap de la Magdelaine and Batiscan, the patrimony of the Jesuits; the fief of Champlain, owned by Desjordy de Cabanac; Ste Anne de la Perade, Nicolet, and Becancour. Nicolet had passed into the hands of the Courvals, a trading family of Three Rivers, and Becancour was held by Pierre Robineau, the son of his famous father, Rene Robineau de Becancour. On all of these seigneuries some progress had been made, but often it amounted to very little. Better results had been obtained both eastward and westward of the region.

The district of Quebec was the first to be allotted in seigneuries, and here of course agriculture had made better headway. Grondines, La Chevrotiere, Portneuf, Pointe aux Trembles, Sillery, and Notre-Dame des Anges were all thriving properties ranging along the river bank eastward to the settlement at Quebec. Just beyond the town lay the flourishing fief of Beauport, originally owned by Robert Giffard, but now held by his heirs, the family of Juchereau Duchesnay. This seignury was destined to loom up prominently in later days when Montcalm held Wolfe at bay for weeks along the Beauport shore. Fronting Beauport was the spacious island of Orleans with its several thriving parishes, all included within the seignury of Francois Berthelot, on whom the king for his zeal and enterprise had conferred the title of Comte de St Laurent. A score of other seigneurial tracts, including Lotbiniere, Lauzon, La Durantaye, Bellechasse, Riviere Ouelle, and others well known to every student of Canadian genealogy, were included within the huge district round the ancient capital.

The king's representatives had been much too freehanded in granting land. No seigneur had a tenth of his tract under cultivation, yet all the best-located and most fertile soil of the colony had been given out. Those who came later had to take lands in out-of-the-way places, unless by good fortune they could secure the re-grant of something that had been abandoned. The royal generosity did not in the long run conduce to the upbuilding of the colony, and the home authorities in time recognized the imprudence of their policy. Hence it was that edict after edict sought to make these gentlemen of the wilderness give up whatever land they could not handle properly, and if these decrees of retrenchment had been strictly enforced most of the seigneurial estates would have been mercilessly reduced in area. But the seigneurs who were the most remiss happened to be the ones who sat at the council board in Quebec, and what they had they usually managed to hold, despite the king's command.

CHAPTER III

THREE SEIGNEURS OF OLD CANADA—HEBERT, LA DURANTAYE, LE MOYNE

It was to the seigneurs that the king looked for active aid in promoting the agricultural interests of New France. Many of them disappointed him, but not all. There were seigneurs who, in their own way, gave the king's interests a great deal of loyal service, and showed what the colony was capable of doing if all its people worked with sufficient diligence and zeal. Three of these pioneers of the seigneuries have been singled out for special attention in this chapter, because each prefigures a type of seigneur who did what was expected of him, although not always in the prescribed way. Their work was far from being showy, and offers a writer no opportunity to make his pages glow. The priest and the trader afford better themes. But even the short and simple annals of the poor, if fruitful in achievement, are worth the recounting.

The honour of being the colony's first seigneur belongs to Louis Hebert, and it was a curious chain of events that brought him to the role of a yeoman in the St Lawrence valley. Like most of these pilgrim fathers of Canada, Hebert has left to posterity little or no information concerning his early life and his experience as tiller of virgin soil. That is a pity; for he had an interesting and varied career from first to last. What he did and what he saw others do during these troublous years would make a readable chronicle of adventure, perseverance, and ultimate achievement. As it is, we must

merely glean what we can from stray allusions to him in the general narratives of early colonial life. These tell us not a tithe of what we should like to know; but even such shreds of information are precious, for Hebert was Canada's first patron of husbandry. He connected his name with no brilliant exploit either of war or of peace; he had his share of adventure, but no more than a hundred others in his day; the greater portion of his adult years were passed with a spade in his hands. But he embodies a type, and a worthy type it is.

Most of Canada's early settlers came from Normandy, but Louis Hebert was a native of Paris, born in about 1575. He had an apothecary's shop there, but apparently was not making a very marked success of his business when in 1604. he fell in with Biencourt de Poutrincourt, and was enlisted as a member of that voyageur's first expedition to Acadia. It was in these days the custom of ships to carry an apothecary or dispenser of health-giving herbs. His functions ran the whole gamut of medical practice from copious blood-letting to the dosing of sailors with concoctions of mysterious make. Not improbably Hebert set out with no intention to remain in America; but he found Port Royal to his liking, and there the historian Lescarbot soon found him not only 'sowing corn and planting vines,' but apparently 'taking great pleasure in the cultivation of the soil.' All this in a colony which comprised five persons, namely, two Jesuit fathers and their servant, Hebert, and one other.

With serious dangers all about, and lack of support at home, Port Royal could make no headway, and in 1613 Hebert made his way back to France. The apothecary's shop was re-opened, and the daily customers were no doubt regaled with stories of life among the wild aborigines of the west. But not for long. There was a trait of restlessness that would not down, and in 1616 the little shop again put up its shutters. Hebert had joined Champlain in the Brouage navigator's first voyage to the St Lawrence. This time the

apothecary burned his bridges behind him, for he took his family along, and with them all his worldly effects. The family consisted of his wife, two daughters, and a young son. The trading company which was backing Champlain's enterprise promised that Hebert and his family should be paid a cash bonus and should receive, in addition to a tract of land, provisions and stores sufficient for their first two years in the colony. For his part, Hebert agreed to serve without pay as general medical officer of the settlement, to give his other services to the company when needed, and to keep his hands out of the fur trade. Nothing was said about his serving as legal officer of the colony as well; but that task became part of his varied experience. Not long after his arrival at Quebec, Hebert's name appears, with the title of procureur du Roi, at the foot of a petition sent home by the colonists to the king.

All this looked fair enough on its face, but as matters turned out, Hebert made a poor bargain. The company gave him only half the promised bonus, granted him no title to any land, and for three years insisted upon having all his time for its own service. A man of ordinary tenacity would have made his way back to France at the earliest opportunity. But Hebert was loyal to Champlain, whom he in no way blamed for his bad treatment. At Champlain's suggestion he simply took a piece of land above the settlement at Quebec, and without waiting for any formal title-deed began devoting all his spare hours to the task of getting it cleared and cultivated. His small tract comprised only about a dozen arpents on the heights above the village; and as he had no one to help him the work of clearing it moved slowly. Trees had to be felled and cut up, the stumps burned and removed, stones gathered into piles, and every foot of soil upturned with a spade. There were no ploughs in the colony at this time. To have brought ploughs from France or to have made them in the colony would have availed nothing, for there were no horses at Quebec. It was not until after the sturdy pioneer had

finished his lifework that ploughs and horses came to lessen the labour of breaking new land.

Nevertheless, Hebert was able by unremitting industry to get the entire twelve arpents into cultivable shape within four or five years. With his labours he mingled intelligence. Part of the land was sown with maize, part sown with peas, beans, and other vegetables, a part set off as an orchard, and part reserved as pasture. The land was fertile and produced abundantly. A few head of cattle were easily provided for in all seasons by the wild hay which grew in plenty on the flats by the river. Here was an indication of what the colony could hope to do if all its settlers were men of Hebert's persistence and stability. But the other prominent men of the little settlement, although they may have turned their hands to gardening in a desultory way, let him remain, for the time being, the only real colonist in the land. On his farm, moreover, a house had been built during these same years with the aid of two artisans, but chiefly by the labour of the owner himself. It was a stone house, about twenty feet by forty in size, a one-story affair, unpretentious and unadorned, but regarded as one of the most comfortable abodes in the colony. The attractions of this home, and especially the hospitality of Madame Hebert and her daughters, are more than once alluded to in the meagre annals of the settlement. It was the first dwelling to be erected on the plateau above the village; it passed to Hebert's daughter, and was long known in local history as the house of the widow Couillard. Its exact situation was near the gate of the garden which now encircles the seminary, and the remains of its foundation walls were found there in 1866 by some workmen in the course of their excavations.

That strivings so worthy should have in the end won due recognition from official circles is not surprising. The only wonder is that this recognition was so long delayed. An explanation can be found, however, in the fact that the trading company which controlled the destinies of the

colony during its precarious infancy was not a bit interested in the agricultural progress of New France. It had but two aims—in the first place to get profits from the fur trade, and in the second place to make sure that no interlopers got any share in this lucrative business. Its officers placed little value upon such work as Hebert was doing. But in 1623 the authorities were moved to accord him the honour of rank as a seigneur, and the first title-deed conveying a grant of land en seigneurie was issued to him on February 4 of that year. The deed bore the signature of the Duc de Montmorenci, titular viceroy of New France. Three years later a further deed, confirming Hebert's rights and title, and conveying to him an additional tract of land on the St Charles river, was issued to him by the succeeding viceroy, Henri de Levy, Duc de Ventadour.

The preamble of this document recounts the services of the new seigneur. 'Having left his relatives and friends to help establish a colony of Christian people in lands which are deprived of the knowledge of God, not being enlightened by His holy light,' the document proceeds, 'he has by his painful labours and industry cleared lands, fenced them, and erected buildings for himself, his family and his cattle.' In order, accordingly, 'to encourage those who may hereafter desire to inhabit and develop the said country of Canada,' the land held by Hebert, together with an additional square league on the shore of the St Charles, is given to him 'to have and to hold in fief noble for ever,' subject to such charges and conditions as might be later imposed by official decree.

By this indenture feudalism cast its first anchor in the New World. Some historians have attributed to the influence of Richelieu this policy of creating a seigneurial class in the transmarine dominions of France. The cardinal-minister, it is said, had an idea that the landless aristocrats of France might be persuaded to emigrate to the colonies by promises of lavish seigneurial estates wrested from the wilderness. It will be noted, however,

that Hebert received his title-deed before Richelieu assumed the reins of power, so that, whatever influence the latter may have had on the extension of the seigneurial system in the colonies, he could not have prompted its first appearance there.

Hebert died in 1627. Little as we know about his life, the clerical chroniclers tell us a good deal about his death, which proves that he must have had all the externals of piety. He was extolled as the Abraham of a new Israel. His immediate descendants were numerous, and it was predicted that his seed would replenish the earth. Assuredly, this portion of the earth needed replenishing, for at the time of Hebert's death Quebec was still a struggling hamlet of sixty-five souls, two-thirds of whom were women and children unable to till the fields. Hebert certainly did his share. His daughters married in the colony and had large families. By these marriages a close alliance was formed with the Couillards and other prominent families of the colony's earliest days. From these and later alliances some of the best-known families in the history of French Canada have come down,—the Jolliets, De Lerys, De Ramesays, Fourniers and Taschereaus,—and the entire category of Hebert's descendants must run well into the thousands. All but unknown by a busy world outside, the memory of this Paris apothecary has none the less been cherished for nearly three hundred years in many a Canadian home. Had all the seigneurs of the old regime served their king with half his zeal the colony would not have been left in later days so naked to its enemies.

But not all the seigneurs of Old Canada were of Hebert's type. Too many of them, whether owing to inherited Norman traits, to their previous environment in France, or to the opportunities which they found in the colony, developed an incurable love of the forest life. On the slightest pretext they were off on a military or trading expedition, leaving their lands, tenants, and often their own families to shift as best they might. Fields grew

wild while the seigneurs, and often their habitants with them, spent the entire spring, summer, and autumn in any enterprise that promised to be more exciting than sowing and reaping grain. Among the military seigneurs of the upper St Lawrence and Richelieu regions not a few were of this type. They were good soldiers and quickly adapted themselves to the circumstances of combat in the New World, meeting the Iroquois with his own arts and often combining a good deal of the red man's craftiness with a white man's superior intelligence. Insatiable in their thirst for adventure, they were willing to assume all manner of risks or privations. Spring might find them at Lake Champlain, autumn at the head-waters of the Mississippi, a trusty birch-bark having carried them the thousand miles between. Their work did not figure very heavily in the colony's annual balance-sheet of progress with its statistics of acreage newly cleared, homes built and harvests stowed safely away. But according to their own ideals of service they valiantly served the king, and they furnish the historian of the old regime with an interesting and unusual group of men. Neither New England nor the New Netherlands possessed this type within their borders, and this is one reason why the pages of their history lack the contrast of light and shade which marks from start to finish the annals of New France.

When the Carignans stepped ashore at Quebec in 1665 one of their officers was Olivier Morel de la Durantaye, a captain in the regiment of Campelle, but attached to the Carignan-Salieres for its Canadian expedition. In the first expedition against the Mohawks he commanded the advance guard, and he was one of the small band who spent the terrible winter of 1666-67 at Fort Ste Anne near the head of Lake Champlain, subsisting on salt pork and a scant supply of mouldy flour. Several casks of reputedly good brandy, as Dollier de Casson records, had been sent to the fort, but to the chagrin of the diminutive garrison they turned out to contain salt water, the sailors having drunk the contents and refilled the casks on their way out from France. Warlike operations continued to engross Durantaye's

attentions for a year or two longer, but when this work was finished he returned with some of his brother officers to France, while others remained in the colony, having taken up lands in accordance with Talon's plans. In 1670, however, he was back at Quebec again, and having married a daughter of the colony, applied at once for the grant of a seigneurie. This was given to him in the form of a large tract, two leagues square, on the south shore of the lower St Lawrence, between the seigneurie of Beaumont des Islets and the Bellechasse channel. To this fief of La Durantaye adjoining lands were subsequently added by new grants, and in 1674 the seigneur also obtained the fief of Kamouraska. His entire estate comprised about seventy thousand arpents, making him one of the largest landowners in the colony.

Durantaye began his work in a leisurely way, and the census of 1681 gives us the outcome of his ten years of effort. He himself had not taken up his abode on the land nor, so far as can be ascertained, had he spent any time or money in clearing its acreage. With his wife and four children he resided at Quebec, but from time to time he made visits to his holding and brought new settlers with him. Twelve families had built their homes within the spacious borders of his seigneurie. Their whitewashed cottages were strung along a short stretch of the river bank side by side, separated by a few arpents. Men, women, and children, the population of La Durantaye numbered only fifty-eight; sixty-four arpents had been cleared; and twenty-eight horned cattle were reported among the possessions of the habitants. Rather significantly this colonial Domesday of 1681 mentions that the sixteen able-bodied men of the seigneurie possessed 'seven muskets' among them. From its situation, however, the settlement was not badly exposed to Indian assault.

In the way of cleared lands and population the fief of La Durantaye had made very modest progress. Its nearest neighbour, Bellechasse, contained

two hundred and twenty-seven persons, living upon three hundred and twenty arpents of cultivable land. With an arsenal of sixty-two muskets it was better equipped for self-defence. The census everywhere took more careful count of muskets than of ploughs; and this is not surprising, for it was the design of the authorities to build up a 'powerful military colony' which would stand on its own feet without support from home. They did not seem to realize that in the long run even military prowess must rest with that land which most assiduously devotes itself to the arts of peace.

Ten years later the fief of Durantaye made a somewhat better showing. The census of 1692 gave it a marked increase in population, in lands made arable, and in herds of domestic cattle. A house had been built for the seigneur, whose family occupied it at times, but showed a preference for the more attractive life at Quebec. Durantaye was not one of the most prosperous seigneuries, neither was it among those making the slowest progress. As Catalogne phrased the situation in 1712, its lands were 'yielding moderate harvests of grain and vegetables.' Fruit-trees had been brought to maturity in various parts of the seigneurie and were bearing well. Much of the land was well wooded with oak and pine, a good deal of which had been already, in 1712, cut down and marketed at Quebec.

Morel de la Durantaye could not resign himself to the prosaic life of a cultivator. He did not become a *coureur de bois* like many of his friends and associates, but like them he had a taste for the wild woods, and he pursued a career not far removed from theirs. In 1684 he was in command of the fortified trading-post at Michilimackinac, and he had a share in Denonville's expedition against the Onondagas three years later. On that occasion he mustered a band of traders who, with a contingent of friendly Indians, followed him down to the lakes to join the punitive force. In 1690 he was at Montreal, lending his aid in the defence of that part of the colony against raiding bands of Iroquois which were once again proving a menace. At

Boucherville, in 1694, one historian tells us with characteristic hyperbole, Durantaye killed ten Iroquois with his own hand. Mohawks were not, as a rule, so easy to catch or kill. Two years later he commanded a detachment of troops and militiamen in operations against his old-time foes, and in 1698 he was given a royal pension of six hundred livres per year in recognition of his services. Having been so largely engaged in these military affrays, little time had been available for the development of his seigneurie. His income from the annual dues of its habitants was accordingly small, and the royal gratuity was no doubt a welcome addition. The royal bounty never went begging in New France. No one was too proud to dip his hand into the king's purse when the chance presented itself.

In June 1703 Durantaye received the signal honour of an appointment to the Superior Council at Quebec, and this post gave him additional remuneration. For the remaining twenty-four years of his life the soldier-seigneur lived partly at Quebec and partly at the manor-house of his seigneurial estate. At the time of his death, in 1727, these landed holdings had greatly increased in population, in cleared acreage, and in value, although it cannot be said that this progress had been in any direct way due to the seigneur's active interest or efforts. He had a family of six sons and three daughters, quite enough to provide for with his limited income, but not a large family as households went in those days. Durantaye was not among the most effective of the seigneurs; but little is to be gained by placing the various leaders among the landed men of New France in sharp contrast, comparing their respective contributions one with another. The colony had work for all to do, each in his own way.

Among those who came to Montreal in 1641, when the foundations of the city were being laid, was the son of a Dieppe innkeeper, Charles Le Moyne by name. Born in 1624, he was only seventeen when he set out to seek his fortune in the New World. The lure of the fur trade promptly

overcame him, as it did so many others, and the first few years of his life in Canada were spent among the Hurons in the regions round Georgian Bay. On becoming of age, however, he obtained a grant of lands on the south shore of the St Lawrence, opposite Montreal, and at once began the work of clearing it. This area, of fifty lineal arpents in frontage by one hundred in depth, was granted to Le Moyne by M. de Lauzon [Footnote: Jean de Lauzon, at this time president of the Company of One Hundred Associates, which, as we have seen, had the feudal suzerainty of Canada. Lauzon was afterwards governor of New France, 1651-56.] as a seigneurie on September 24, 1647.

Despite the fact that his holding was directly in the path of Indian attacks, Le Moyne made steady progress in clearing it; he built himself a house, and in 1654, at the age of twenty-eight, married Mademoiselle Catherine Primot, formerly of Rouen. The governor of Montreal, M. de Maisonneuve, showed his good will by a wedding gift of ninety additional arpents. But Le Moyne's ambition to provide for a rapidly growing family led him to petition the intendant for an enlargement of his holdings, and in 1672 the intendant Talon gave him the land which lay between the seigneuries of Varennes and La Prairie de la Magdelaine. This with his other tract was united to form the seigneurie of Longueuil. Already the king had recognized Le Moyne's progressive spirit by giving him rank in the noblesse, the letters-patent having been issued in 1668. On this seigneurie the first of the Le Moynes de Longueuil lived and worked until his death in 1685.

Charles Le Moyne had a family of eleven sons, of whom ten grew to manhood and became figures of prominence in the later history of New France. From Hudson Bay to the Gulf of Mexico their exploits covered every field of activity on land and sea. [Footnote: These sons were: (1) Charles Le Moyne de Longueuil, born 1656, who succeeded his father as seigneur and became the first Baron de Longueuil, later served as

lieutenant-governor of Montreal, and was killed in action at Saratoga on June 8, 1729; (2) Jacques Le Moyne de Ste Helene, born 1659, who fell at the siege of Quebec in 1690; (3) Pierre Le Moyne d'Iberville, born in 1661, voyageur to Hudson Bay and the Spanish Main, died at Havana in 1706; (4) Paul Le Moyne de Maricourt, born 1663, captain in the marine, died in 1704 from hardships during an expedition against the Iroquois; (5) Francois Le Moyne de Bienville, born 1666, intrepid young border-warrior, killed by the Iroquois in 1691; (6) Joseph Le Moyne de Serigny, born 1668, served as a youth in the expeditions of his brother to Hudson Bay, died in 1687; (7) Louis Le Moyne de Chateaugay, born 1676, his young life ended in action at Fort Bourbon (Nelson or York Factory) on Hudson Bay in 1694; (8) Jean-Baptiste Le Moyne de Bienville, born 1680, founder of New Orleans, governor of Louisiana, died in Paris, 1767; (9) Gabriel Le Moyne d'Assigny, born 1681, died of yellow fever at San Domingo in 1701; (10) Antoine Le Moyne de Chateaugay, born 1683, governor of French Guiana.] What scions of a stout race they were! The strain of the old Norse rover was in them all. Each one a soldier, they built forts, founded cities, governed colonies, and gave their king full measure of valiant service.

The eldest, who bore his father's name and possessed many of his traits, inherited the seigneury. Soon he made it one of the most valuable properties in the whole colony. The old manor-house gave way to a pretentious chateau flanked by four imposing towers of solid masonry. Its dimensions were, as such things went in the colony, stupendously large, the structure being about two hundred feet in length by one hundred and seventy in breadth. The great towers or bastions were loopholed in such way as to permit a flanking fire in the event of an armed assault; and the whole building, when viewed from the river, presented an impressive facade. The grim Frontenac, who was not over-given to eulogy, praised it in one of his dispatches and said that it reminded him of the embattled chateaux of old Normandy. Speaking from the point of view of the other seigneurs, the cost

of this manorial abode of the Longueuils must have represented a fortune. The structure was so well built that it remained fit for occupancy during nearly a full century, or until 1782, when it was badly damaged by fire. A century later still, in 1882, the walls remained; but a few years afterwards they were removed to make room for the new parish church of Longueuil.

Le Moyne did more than build an imposing house. He had the stones gathered from the lands and used in building houses for his people. The seigneur's mill was one of the best. A fine church raised its cross-crowned spire near by. A brewery, built of stone, was in full operation. The land was fertile and produced abundant harvests. When Catalogne visited Longueuil in 1712 he noted that the habitants were living in comfortable circumstances, by reason of the large expenditures which the seigneur had made to improve the land and the means of communication. Whatever Charles Le Moyne could gather together was not spent in riotous living, as was the case with so many of his contemporaries, but was invested in productive improvements. That is the way in which he became the owner of a model seigneurie.

A seigneur so progressive and successful could not escape the attention of the king. In 1698 the governor and the intendant joined in bringing Le Moyne's services to the favourable notice of the minister, with the suggestion that it should receive suitable acknowledgment. Two years later this recognition came in the form of a royal decree which elevated the seigneurie of Longueuil to the dignity of a barony, and made its owner the Baron de Longueuil. In recounting the services rendered to the colony by the new baron the patent mentioned that 'he has already erected at his own cost a fort supported by four strong towers of stone and masonry, with a guard-house, several large dwellings, a fine church bearing all the insignia of nobility, a spacious farmyard in which there is a barn, a stable, a sheep-pen, a dovecote, and other buildings, all of which are within the area of the

said fort; next to which stands a banal mill, a fine brewery of masonry, together with a large retinue of servants, horses, and equipages, the cost of which buildings amount to sixty thousand livres; so much so that this seigneurie is one of the most valuable in the whole country.' The population of Longueuil, in the census returns of 1698, is placed at two hundred and twenty-three.

The new honour spurred its recipient to even greater efforts; he became one of the first gentlemen of the colony, served a term as lieutenant-governor at Montreal, and, going into battle once more, was killed in action near Saratoga in the expedition of 1729. The barony thereupon passed to his son, the third Charles Le Moyne, born in 1687, who lived until 1755, and was for a time administrator of the colony. His son, the third baron, was killed during the Seven Years' War in the operations round Lake George, and the title passed, in the absence of direct male heirs, to his only daughter, Marie Le Moyne de Longueuil who, in 1781, married Captain David Alexander Grant of the 94th British regiment. Thus the old dispensation linked itself with the new. The eldest son of this marriage became fifth Baron de Longueuil in 1841. Since that date the title has been borne by successive generations in the same family.

Of all the titles of honour, great and small, which the French crown granted to the seigneurs of Old Canada, that of the Baron de Longueuil is the only one now legally recognized in the Dominion. After the conquest the descendants of Charles Le Moyne maintained that, having promised to respect the ancient land tenures, the new British suzerains were under obligation to recognize Longueuil as a barony. It was not, however, until 1880 that a formal request for recognition was made to Her Majesty Queen Victoria. The matter was, of course, submitted to the law officers of the crown, and their decision ruled the claim to be well grounded. By royal proclamation, accordingly, the rank and title of Charles Colmore Grant,

seventh Baron de Longueuil, were formally recognized. [Footnote: The royal recognition was officially promulgated as follows: 'The Queen has been graciously pleased to recognize the right of Charles Colmore Grant, Esquire, to the title of Baron de Longueuil, of Longueuil, in the province of Quebec, Canada. This title was conferred on his ancestor, Charles Le Moyne, by letters-patent of nobility signed by King Louis XIV in the year 1700.'- (London Gazette, December 7, 1880.)]

The barony of Longueuil at one time included an area of about one hundred and fifty square miles, much of it heavily timbered and almost all fit for cultivation. The thriving towns of Longueuil and St Johns grew up within its limits in the century following the conquest. As population increased, much of the land was sold into freehold; and when the seigneurial system was abolished in 1854 what had not been sold was entailed. An entailed estate, though not now of exceeding great value, it still remains.

No family of New France maintained more steadily its favourable place in the public view than the house of Longueuil. The sons, grandsons, and great-grandsons of the Dieppe innkeeper's boy were leaders of action in their respective generations. Soldiers, administrators, and captains of industry, they contributed their full share to the sum of French achievement, alike in war and peace. By intermarriage also the Le Moynes of Longueuil connected themselves with other prominent families of French Canada, notably those of Beaujeu, Lanaudiere, and Gaspé. Unlike most of the colonial noblesse, they were well-to-do from the start, and the barony of Longueuil may be rightly regarded as a good illustration of what the seigneurial system could accomplish at its best.

These three seigneurs, Hebert, La Durantaye, and Le Moyne, represent three different, yet not so very dissimilar types of landed pioneer. Hebert,

the man of humble birth and limited attainments, made his way to success by unremitting personal labour under great discouragements. He lived and died a plain citizen. He had less to show for his life-work than the others, perhaps; but in those swaddling days of the colony's history his task was greater. Morel de la Durantaye, the man-at-arms, well born and bred, took his seigneurial rank as a matter of course, and his duties without much seriousness. His seigneurie had his attention only when opportunities for some more exciting field of action failed to present themselves. Interesting figure though he was—an excellent type of a hundred others—it was well for the colony that not all its seigneurs were like him in temperament and ways. Le Moyne, the nearest Canadian approach to the seigneur of Old France in the days before the Revolution, combined the best qualities of the other two. There was plenty of red blood in his veins, and to some of his progeny went more of it than was good for them. He was ready with his sword when the occasion called. An arm shot off by an Iroquois flintlock in 1687 gave him through life a grim reminder of his combative habits in early days. But warfare was only an avocation; the first fruits of the land absorbed his main interest throughout the larger part of his days. Each of these men had others like him, and the peculiar circumstances of the colony found places for them all. The seigneurs of Old Canada did not form a homogeneous class; men of widely differing tastes and attainments were included among them. There were workers and drones; there were men who made a signal success as seigneurs, and others who made an utter failure. But taken as a group there was nothing very commonplace about them, and it is to her two hundred seigneurs or thereabouts that New France owes much of the glamour that marks her tragic history.

CHAPTER IV

SEIGNEUR AND HABITANT

In its attitude toward the seigneurs the crown was always generous. The seigneuries were large, and from the seigneurs the king asked no more than that they should help to colonize their grants with settlers. It was expected, in turn, that the seigneurs would show a like spirit in all dealings with their dependants. Many of them did; but some did not. On the whole, however, the habitants who took farms within the seigneuries fared pretty well in the matter of the feudal dues and services demanded from them. Compared with the seigneurial tenantry of Old France their obligations were few in number, and imposed almost no burden at all.

This is a matter upon which a great deal of nonsense has been written by English writers on the early history of Canada, most of whom have been able to see nothing but the spectre of paternalism in every domain of colonial life. It is quite true, as Tocqueville tells us, that the physiognomy of a government can be best judged in its colonies, for there its merits and faults appear as through a microscope. But in Canada it was the merits rather than the faults of French feudalism which came to the front in bold relief. There it was that seigneurial polity put its best foot forward. It showed that so long as defence was of more importance than opulence the institution could fully justify its existence. Against the seigneurial system as such no element in the population of New France ever raised, so far as the

records attest, one word of protest during the entire period of French dominion. The habitants, as every shred of reliable contemporary evidence goes to prove, were altogether contented with the terms upon which they held their lands, and thought only of the great measure of freedom from burdens which they enjoyed as compared with their friends at home. To speak of them as 'slaves to the corvees and unpaid military service, debarred from education and crammed with gross fictions as an aid to their docility and their value as food for powder,' [Footnote: A. G. Bradley, *The fight with France for North America* (London, 1905, p. 388).] is to display a rare combination of hopeless bigotry and crass ignorance. The habitant of the old regime in Canada was neither a slave nor a serf; neither down-trodden nor maltreated; neither was he docile and spineless when his own rights were at issue. So often has all this been shown that it is high time an end were made of these fictions concerning the woes of Canadian folk-life in the days before the conquest.

We have ample testimony concerning the relations of seigneur and habitant in early Canada, and it comes from many quarters. First of all there are the title-deeds of lands, thousands of which have been preserved in the various notarial archives. It ought to be explained, in passing, that when a seigneur wished to make a grant of land the services of a notary were enlisted. Notaries were plentiful; the census of 1681 enumerated twenty-four of them in a population of less than ten thousand. The notary made his documents in the presence of the parties, had them signed, witnessed, and sealed with due formality. The seigneur kept one copy, the habitant another, and the notary kept the original. In the course of time, therefore, each notary accumulated quite a collection or cadastre of legal records which he kept carefully. At his death they were passed over to the general registry, or office of the greffier, at Quebec. In general the notaries were men of rather meagre education; their work on deeds and marriage settlements was too often very poorly done, and lawsuits were all the more common in

consequence. But the colony managed to get along with this system of conveyancing, crude and undependable as it was.

In the title-deeds of lands granted by the seigneurs to the habitants the situation and area are first set forth. The grants were of all shapes and sizes. As a rule, however, they were in the form of a parallelogram, with the shorter end fronting the river and the longer side extending inland. The usual river frontage was from five to ten lineal arpents, and the depth ranged from ten to eighty arpents. It should be explained that the arpen de Paris, in terms of which colonial land measurements were invariably expressed, served both as a unit of length and as a unit of area. The lineal arpent was the equivalent of one hundred and ninety-two English feet. The superficial arpent, or arpent of area, contained about five-sixths of an acre. The habitant's customary frontage on the river was, accordingly, from about a thousand to two thousand feet, while his farm extended rearwards a distance of anywhere from under a half-mile to three miles.

This rather peculiar configuration of the farms arose wholly from the way in which the colony was first settled. For over a century after the French came to the St Lawrence all the seigneuries were situated directly on the shores of the river. This was only natural, for the great waterway formed the colony's carotid artery, supplying the life-blood of all New France so far as communications were concerned. From seigneurie to seigneurie men traversed it in canoes or bateaux in summer, and over its frozen surface they drove by carriage during the long winters. Every one wanted to be in contact with this main highway, so that the demand for farms which should have some river frontage, however small, was brisk from the outset. Near the river the habitant began his clearing and built his house. Farther inland, as the lands rose from the shore, was the pasture; and behind this again lay the still uncleared woodland. When the colony built its first road, this thoroughfare skirted the north shore of the St Lawrence, and so placed an

even greater premium on farms contiguous to the river. It was only after all the best lands with river frontage had been taken up that settlers resorted to what was called 'the second range' farther inland.

Now it happened that in thus adapting the shape of grants to the immediate convenience and caprice of the habitants a curious handicap was in the long run placed upon agricultural progress. By the terms of the Custom of Paris, which was the common law of the colony, all the children of a habitant's family, male and female, inherited equal shares of his lands. When, therefore, a farm was to be divided at its owner's decease each participant in the division wanted a share in the river frontage. With large families the rule, it can easily be seen that this demand could only be met by shredding the farm into mere ribbons of land with a frontage of only fifty or a hundred feet and a depth of a mile or more. That was the usual course pursued; each child had his strip, and either undertook to get a living out of it or sold his land to an adjoining heir. In any case, the houses and barns of the one who came into ownership of these thin oblongs were always situated at or near the water-front, so that the work of farming the land necessitated a great deal of travelling back and forth. Too many of the habitants, accordingly, got into the habit of spending all their time on the fields nearest the house and letting the rear grow wild. The situation militated against proper rotation of crops, and in many ways proved an obstacle to progress. The trouble was not that the farms were too small to afford the family a living. In point of area they were large enough; but their abnormal shape rendered it difficult for the habitant to get from them their full productive power with the rather short season of cultivation that the climate allowed.

So important a handicap did this situation place upon the progress of agriculture that in 1744 the governor and the intendant drew the attention of the home authorities to it, and urged that some remedy be provided. With

simple faith in the healing power of a royal edict, the king promptly responded with a decree which ordered that no habitant should thenceforth build his house and barn on any plot of land which did not have at least one and one-half lineal arpents of frontage (about three hundred feet). Any buildings so erected were to be demolished. What a crude method of dealing with a problem which had its roots deep down in the very law and geography of the colony! But this royal remedy for the ills of New France went the way of many others. The authorities saw that it would work no cure, and only one attempt was ever made to punish those habitants who showed defiance. The intendant Bigot, in 1748, ordered that some houses which various habitants had erected at L'Ange-Gardien should be pulled down, but there was a great hue and cry from the owners, and the order remained unenforced. The practice of parcelling lands in the old way continued, and in time these cotes, as the habitants termed each line of houses along the river, stretched all the way from Quebec to Montreal. From the St Lawrence the whole colony looked like one unending, straggling village-street.

But let us outline the dues and services which the habitant, by the terms of his title-deed, must render to his seigneur. First among these were the annual payments commonly known as the cens et rentes. To the habitant this was a sort of annual rental, although it was really made up of two separate dues, each of which had a different origin and nature. The cens was a money payment and merely nominal in amount. Back in the early days of feudalism it was very probably a greater burden; in Canada it never exceeded a few sous for a whole farm. The rate of cens was not uniform: each seigneur was entitled to what he and the habitant might agree upon, but it never amounted to more than the merest pittance, nor could it ever by any stretch of the imagination be deemed a burden. With the cens went the rentes, the latter being fixed in terms of money, poultry, or produce, or all three combined. 'One fat fowl of the brood of the month of May or twenty

sols (sous) for each lineal arpent of frontage'; or 'one minot of sound wheat or twenty sols for each arpent of frontage' is the way in which the obligation finds record in some title-deeds which are typical of all the rest. The seigneur had the right to say whether he wanted his rentes in money or in kind, and he naturally chose the former when prices were low and the latter when prices were high.

It is a little difficult to estimate just what the ordinary habitant paid each year by way of cens et rentes to his seigneur, but under ordinary conditions the rental would amount to about ten or twelve sous and a half-dozen chickens or a bushel of grain for the average farm. Not a very onerous annual payment for fifty or sixty acres of land! Yet this was the only annual emolument which the seigneur of Old Canada drew each year from his tenantry. With twenty-five allotments in his seigneurie the yearly income would be perhaps thirty or forty livres if translated into money, that is to say, six or eight dollars in our currency. Allowing for changes in the purchasing power of money during the last two hundred years, a fair idea of the burden placed on the habitant by his payment of the cens et rentes may be given by estimating it, in terms of present-day agricultural rentals, at, say, fifty cents yearly per acre. This is, of course, a rough estimate, but it conveys an idea that is approximately correct and, indeed, about as near the mark as one can come after a study of the seigneurial system in all its phases. The payment constituted a burden, and the habitants doubtless would have welcomed its abolition; but it was not a heavy tax upon their energies; it was less than the Church demanded from them; and they made no serious complaints regarding its imposition.

The cens et rentes were paid each year on St Martin's Day, early in November. By that time the harvest had been flailed and safely stowed away; the poultry had fattened among the fields of stubble. One and all, the habitants came to the manor-house to give the seigneur his annual tribute.

Carriages and celeches filled his yard. Women and children were brought along, and the occasion became a neighbourhood holiday. The manor-house was a lively place throughout the day, the seigneur busily checking off his lists as the habitants, one after another, drove in with their grain, their poultry, and their wallets of copper coins. The men smoked assiduously; so did the women sometimes. Not infrequently, as the November air was damp and chill, the seigneur passed his flagon of brandy among the thirsty brotherhood, and few there were who allowed this token of hospitality to pass them by. With their tongues thus loosened, men and women glibly retailed the neighbourhood gossip and the latest tidings which had filtered through from Quebec or Montreal. There was an incessant clatter all day long, to which the captive fowls, with their feet bundled together but with throats at full liberty, contributed their noisy share. As dusk drew near there was a general handshaking, and the carriages scurried off along the highway. Every one called his neighbour a friend, and the people of each seigneurie were as one great family.

The cens et rentes made up the only payment which the seigneur received each year, but there was another which became due at intervals. This was the payment known as the lods et ventes, a mutation fine which the seigneur had the right to demand whenever a farm changed hands by sale or by descent, except to direct heirs. One-twelfth of the value was the seigneur's share, but it was his custom to rebate one-third of this amount. Lands changed hands rather infrequently, and in any case the seigneur's fine was very small. From this source he received but little revenue and it came irregularly. Only in the days after the conquest, when land rose in value and transfers became more frequent, could the lods et ventes be counted among real sources of seigneurial income.

Then there were the so-termed banalites. In France their name was legion; no one but a seigneur could own a grist-mill, wine-press, slaughter-

house, or even a dovecot. The peasant, when he wanted his grain made into flour or his grapes made into wine, was required to use his seigneur's mill, or press, and to pay the toll demanded. This toll was often exorbitant and the service poor. In Canada, however, there was only one *droit de banalite*—the grist-mill right. The Canadian seigneur had the exclusive milling privilege; his habitants were bound by their title-deed to bring their grist to his mill, and his legal toll was one-fourteenth of their grain. This obligation did not bear heavily on the people of the seigneuries; most of the complaints concerning it came rather from the seigneurs, who claimed that the toll was too small and did not suffice, in the average seigneurie, to pay the wages of the miller. Many seigneurs declined to build mills until the royal authorities stepped in with a decree commanding that those who did not do so should lose their banal right for all time. Then they bestirred themselves.

The seigneurial mills were not very efficient, from all accounts. Crude, clumsy, poorly built affairs, they sometimes did little more than crack the wheat into coarse meal—it could hardly be called flour. The bakers of Quebec complained that the product was often unfit to use. The mills were commonly built in tower-like fashion, and were at times loop-holed in order that they might be used if necessary in the defence of seigneuries against Indian attack. The mill of the Seminary of St Sulpice at Montreal, for example, was a veritable stronghold, rightly counted upon as a place of sure refuge for the settlers in time of need. Racked and decayed by the ravages of time, some of those old walls still stand in their loneliness, bearing to an age of smoke-belching industry their message of more modest achievement in earlier days. Most of these banal mills were fitted with clumsy wind-wheels, somewhat after the Dutch fashion. But nature would not always hearken to the miller's command, and often for days the habitants stood around with their grist waiting in patience for the wind to come up and be harnessed.

Some Canadian seigneurs laid claim to the oven right (*droit de four banal*) as well. But the intendant, ever the tribune of his people, sternly set his foot on this pretension. In France the seigneur insisted that the peasantry should bake their bread in the great oven of the seigneurie, paying the customary toll for its use. But in Canada, as the intendant explained, this arrangement was utterly impracticable. Through the long months of winter some of the habitants would have to bring their dough a half-dozen miles, and it would be frozen on the way. Each was therefore permitted to have a bake-oven of his own, and there was, of course, plenty of wood near by to keep it blazing.

Many allusions have been made, in writings on the old regime, to the habitant's *corvee* or obligation to give his seigneur so many days of free labour in each year. In France this incident of seigneurial tenure cloaked some dire abuses. Peasants were harried from their farms and forced to spend weeks on the lord's domain, while their own grain rotted in the fields. But there was nothing of this sort in Canada. Six days of *corvee* per year was all that the seigneur could demand; and he usually asked for only three, that is to say, one day each in the seasons of ploughing, seedtime, and harvest. And when the habitant worked for his seigneur in this way the latter had to furnish him with both food and tools, a requirement which greatly impaired the value of *corvee* labour from the seigneur's point of view. So far as a painstaking study of the records can disclose, the *corvee* obligation was never looked upon as an imposition of any moment. It was apparently no more generally resented than is the so-termed statute-labour obligation which exists among the farming communities of some Canadian provinces at the present day.

As for the other services which the habitant had to render his seigneur, they were of little importance. When he caught fish, one fish in every eleven belonged to his chief. But the seigneur seldom claimed this share,

and received it even less often. The seigneur was entitled to take stone, sand, and firewood from the land of any one within his estate; but when he did this it was customary to give the habitant something of equal value in return. Few seigneurs of New France ever insisted on their full pound of flesh in these matters; a generous spirit of give and take marked most of their dealings with the men who worked the land.

Then there was the maypole obligation, quaintest among seigneurial claims. By the terms of their tenure the habitants of the seigneurie were required to appear each May Day before the main door of the manor-house, and there to plant a pole in the seigneur's honour.

Le premier jour de mai,
Labourez,
J'm'en fus planter un mai,
Labourez,
A la porte a ma mie.

Bright and early in the morning, as Gaspe tells us, the whole neighbourhood appeared, decked out fantastically, and greeted the manor-house with a salvo of blank musketry. With them they bore a tall fir-tree, its branches cut and its bark peeled to within a few feet of the top. There the tuft of greenery remained. The pole, having been gaudily embellished, was majestically reared aloft and planted firmly in the ground. Round it the men and maidens danced, while the seigneur and his family, enthroned in chairs brought from the manor-house, looked on with approval. Then came a rattling feu de joie with shouts of 'Long live the King!' and 'Long live our seigneur!' This over, the seigneur invited the whole gathering to refreshments indoors. Brandy and cakes disappeared with great celerity before appetites whetted by an hour's exercise in the clear spring air. They drank to the seigneur's health, and to the health of all his kin. At intervals

some guest would rush out and fire his musket once again at the maypole, returning for more hospitality with a sense of duty well performed. Before noon the merry company, with the usual round of handshaking, went away again, leaving the blackened pole behind. The echoes of more musket-shots came back through the valleys as they passed out of sight and hearing. The seigneur was more than a mere landlord, as the occasion testified.

CHAPTER V

HOW THE HABITANT LIVED

The seigneurs of New France were not a privileged order. Between them and the habitants there was no great gulf fixed, no social impasse such as existed between the two classes in France. The seigneur often lived and worked like a habitant; his home was not a great deal better than theirs; his daily fare was much the same. The habitant, on the other hand, might himself become a seigneur by saving a little money, and this is what frequently happened. By becoming a seigneur, however, he did not change his mode of life, but continued to work as he had done before. There were some, of course, who took their social rank with great seriousness, and proved ready to pay out good money for letters-patent giving them minor titles of nobility. Thus Jacques Le Ber, a bourgeois of Montreal who made a comfortable fortune out of the fur trade, bought a seigneurie and then acquired the rank of gentilhomme by paying six thousand livres for it. But the possession of an empty title, acquired by purchase or through the influence of official friends at Quebec, did not make much impression on the masses of the people. The first citizens in the hearts of the community were the men of personal courage, talent, and worldly virtues.

Sur cette terre encor sauvage
Les vieux titres sont inconnus;

La noblesse est dans le courage,
Dans les talents, dans les vertus.

Nevertheless, to be a seigneur was always an honour, for the manor-house was the recognized social centre of every neighbourhood.

The manor-house was not a mansion. Built sometimes of rough-hewn timber, but more commonly of stone, it was roomy and comfortable, although not much more pretentious than the homes of well-to-do habitants. Three or four rooms on the ground floor with a spacious attic made up the living quarters. The furniture often came from France, and its quality gave the whole interior an air of distinction. As for the habitants, their homes were also of stone or timber—long and rather narrow structures, heavily built, and low. They were whitewashed on the outside with religious punctuality each spring. The eaves projected over the walls, and high-peaked little dormer windows thrust themselves from the roof here and there. The houses stood very near the roadway, with scarcely ever a grass plot or single shade tree before them. In midsummer the sun beat furiously upon them; in winter they stood in all their bleakness full-square to the blasts that drove across the river.

Behind the house was a storeroom built in 'lean-to' fashion, and not far away stood the barn and stable, made usually of timbers laid one upon the other with chinks securely mortared. Somewhat aloof was the root-house, half dug in the ground, banked generously with earth round about and overhead. Within convenient distance of the house, likewise, was the bake-oven, built of boulders, mortar, and earth, with the wood-pile near by. Here with roaring fires once or twice each week the family baking was done. Round the various buildings ran some sort of fence, whether of piled stones or rails, and in a corner of the enclosed plot was the habitant's garden. Viewed by the traveller who passed along the river this straggling line of

whitewashed structures stood out in bold relief against the towering background of green hills beyond. The whole colony formed one long rambling village, each habitant touching elbows with his neighbour on either side.

Within the habitant's abode there were usually not more than three regular rooms. The front door opened into a capacious living room with its great open fireplace and hearth. This served as dining-room as well. A gaily coloured woollen carpet or rug, made in the colony, usually decked the floor. There was a table and a couch; there were chairs made of pine with seats of woven underbark, all more or less comfortable. Often a huge side-board rose from the floor to the low, open-beamed ceiling. Pictures of saints adorned the walls. A spinning-wheel stood in the corner, sharing place perhaps with a musket set on the floor stock downward, but primed for ready use. Adjoining this room was the kitchen with its fireplace for cooking, its array of pots and dishes, its cupboards, shelves, and other furnishings. All of these latter the habitant and his sons made for themselves. The economic isolation of the parish made its people versatile after their own crude fashion. The habitant was a handy man, getting pretty good results from the use of rough material and tools. Even at the present day his descendants retain much of this facility. At the opposite end of the house was a bedroom. Upstairs was the attic, so low that one could scarcely stand upright in any part of it, but running the full length and breadth of the house. Here the children, often a round dozen of them, were stowed at night. A shallow iron bowl of tallow with a wick protruding gave its dingy light. Candles were not unknown, but they were a luxury. Every one went to bed when darkness came on, for there was nothing else to do. Windows were few, and to keep out the cold they were tightly battened down. The air within must have been stifling; but, as one writer has suggested, the habitant and his family got along without fresh air in his dwelling just as his descendant of to-day manages to get along without baths.

For the most part the people of Old Canada were comfortably clothed and well fed. Warm cloth of drugget—*etoffe du pays*, as it was called—came from the hand-loom of every parish. It was all wool and stood unending wear. It was cheap, and the women of the household fashioned it into clothes. Men, women, and children alike wore it in everyday use; but on occasions of festivity they liked to appear in their brighter plumage of garments brought from France. In the summer the children went nearly unclothed and bare-footed always. A single garment without sleeves and reaching to the knees was all that covered their nakedness. In winter every one wore furs outdoors. Beaver skins were nearly as cheap as cloth, and the wife of the poorest habitant could have a winter wardrobe that it would nowadays cost a small fortune to provide. Heavy clogs made of hide—the *bottes sauvages* as they were called—or moccasins of tanned and oiled skins, impervious to the wet, were the popular footwear in winter and to some extent in summer as well. They were laced high up above the ankles, and with a liberal supply of coarse-knitted woollen socks the people managed to trudge anywhere without discomfort even in very cold weather. Plaited straw hats were made by the women for ordinary summer use, but hats of beaver, made in the fashion of the day, were always worn on dress occasions. Every man wore one to Mass each Sunday morning. In winter the knitted cap or *toque* was the favourite. Made in double folds of woollen yarn with all the colours of the rainbow, it could be drawn down over the ears as a protection from the cold; with its tassel swinging to and fro this *toque* was worn by everybody, men, women, and children alike. Attached to the coat was often a hood, known as a *capuchin*, which might be pulled over the *toque* as an additional head-covering on a journey through the storm. Knitted woollen gloves were also made at home, likewise mitts of sheepskin with the wool left inside. The apparel of the people was thus adapted to their environment, and besides being somewhat picturesque it was thoroughly comfortable.

The daily fare of New France was not of limitless variety, but it was nourishing and adequate. Bread made from wheat flour and cakes made from ground maize were plentiful. Meat and fish were within the reach of all. Both were cured by smoke after the Indian fashion and could be kept through the winter without difficulty. Vegetables of various kinds were grown, but peas were the great staple. Peas were to the French what maize was to the redskin. In every rural home soupe aux pois came daily to the table. Whole families were reared to vigorous manhood on it. Even to-day the French Canadian has not by any means lost his liking for this nourishing and palatable food. Beans, too, were a favourite vegetable in the old days; not the tender haricots of the modern menu, but the feves or large, tough-fibred beans that grew in Normandy and were brought by its people to the New World. There were potatoes, of course, and they were patates, not pommes de terre. Cucumbers were plentiful, indeed they were being grown by the Indians when the French first came to the St Lawrence. As they were not indigenous to that region it is for others than the student of history to explain how they first came there. Fruits there were also, such as apples, plums, cherries, and French gooseberries, but not in abundance. Few habitants had orchards, but most of them had one or two fruit-trees grown from seedlings which came from France. Wild fruits, especially raspberries, cranberries, and grapes, were to be had for the picking, and the younger members of each family gathered them all in season. Even in the humbler homes of the land there was no need for any one to go hungry. More than one visitor to the colony, indeed, was impressed by the rude comfort in which the habitants lived. 'The boors of these manours,' wrote the voluble La Hontan, [Footnote: Louis Armand, Baron La Hontan, came to Canada in 1683, and lived for some time among the habitants of Beaupre, below Quebec, and afterwards in the neighbourhood of Montreal. He also journeyed in the Far West and wrote a fantastic account of his travels, of which an English edition was published in 1703.] 'live with greater comfort

than an infinity of the gentry in France.' And for once he was probably right.

As for drink, there were both tea and coffee to be had from the traders; but they were costly and not in very general use. Milk was cheap and plentiful. Brandy and wine came from France in shiploads, but brandy was largely used in the Indian trade, and wine appeared only on the tables of the well-to-do; the ordinary habitant could not afford it save on state occasions. Cheap beer, brewed in the colony, was within easier range of his purse. There were several breweries in the colony, although they do not appear to have been very profitable to their owners. Home-brewed ale was much in use. When duly aged it made a fine beverage, although insidious in its effects sometimes. But no guest ever came to any colonial home without a proffer of something to drink. Hospitality demanded it. The habitant, as a rule, was very fond of the flagon. Very often, as the records of the day lead us to believe, he drank not wisely but too well. Idleness had a hand in the development of this trait, for in the long winters the habitant had little to do but visit his neighbours.

The men of New France smoked a great deal, and the women sometimes followed their example. Children learned to smoke before they learned to read or write. Tobacco was grown in the colony, and every habitant had a patch of it in his garden; and then as now this *tabac canadien* was fierce stuff with an odour that scented the whole seigneurie. The art of smoking a pipe was one of the first lessons which the Frenchman acquired from his Indian friends, and this became the national solace through the long spells of idleness. Such as it was, the tobacco of the colony was no luxury, for every one could grow enough and to spare to serve his wants. The leaves were set in the sun to cure, and were then put away till needed.

As to the methods of farming, neither the contemporary records nor the narratives of travel tell us much. But it is beyond doubt that the habitant was not a very scientific cultivator. Catalogne remarks in his valuable report that if the fields of France were cultivated like the farms of Canada three-fourths of the people would starve. Fertilization of the land was rare. All that was usually done in this direction was to burn the stubble in the spring before the land went under the plough. Rotation of crops was practically unknown. A portion of each farm was allowed to lie fallow once in a while, but as these fallow fields were rarely ploughed and weeds might grow without restraint, the rest from cultivation was of little value. Even the cultivated fields were ploughed but once a year and rather poorly at that, for the land was ploughed in ridges and there was a good deal of waste between the furrows. When Peter Kalm, the famous Scandinavian naturalist and traveller, paid his visit to the colony in 1748 he found 'white wheat most commonly in the fields.' But oats, rye, and barley were also grown. Some of the habitants grew maize in great quantities, while nearly all raised vegetables of various sorts, chiefly cabbages, pumpkins, and coarse melons. Some gave special attention to the cultivation of flax and hemp. The meadows of the St Lawrence valley were very fertile, and far superior, in Kalm's opinion, to those of the New England colonies; they furnished fodder in abundance. Wild hay could be had for the cutting, and every habitant had his conical stack of it on the river marshes. Hence the raising of cattle and horses became an important branch of colonial husbandry. The cattle and sheep were of inferior breed, undersized, and not very well cared for. The horses were much better. The habitant had a particular fondness for horses; even the poorest tried to keep two or three. This, as Catalogne pointed out, was a gross extravagance, for there was no work for the horses to do during nearly half the year.

The implements of agriculture were as crude as the methods. Most of them were made in the colony out of inferior materials and with poor

workmanship. Kalm saw no drains in any part of the colony, although, as he naively remarked, 'they seemed to be much needed in places.' The fields were seldom fenced, and the cattle often made their way among the growing grain. The women usually worked with the men, especially at harvest time, for extra labour was scarce. Even the wife and daughters of the seigneur might be seen in the fields during the busy season. Each habitant had a clumsy, wooden-wheeled cart or wagon for workaday use. In this he trundled his produce to town once or twice a year. For pleasure there was the celeche and the carriole. The celeche was a quaint two-wheeled vehicle with its seat set high in the air on springs of generous girth; the carriole, a low-set sleigh on solid wooden runners, with a high back to give protection from the cold. Both are still used in various parts of Quebec today. The habitant made his own harness, often decorating it gaily and taking great pride in his workmanship.

The feudal folk of New France did not spend all their time or energies in toil. They had numerous holidays and times of recreation. Loyal to his Church, the habitant kept every jour de fete with religious precision. These days came frequently, so much so, according to Catalogne's report, that during the whole agricultural season from May to October, only ninety clear days were left for labour. On these numerous holidays were held the various festivals, religious or secular. Sunday, also, was a day of general rendezvous. Every one came to Mass, whatever the weather. After the service various announcements were made at the church door by the local capitaine de la milice, who represented the civil government in the parish. Then the rest of the day was given over to visiting and recreation. There was plenty of time, moreover, for hunting and fishing; and the average habitant did both to his heart's content. In the winter there was a great deal of visiting back and forth among neighbours, even on week-days. Dancing was a favourite diversion and card-playing also. Gambling at cards was more common among the people than suited either the priests or the civil

authorities, as the records often attest. Less objectionable amusements were afforded by the corvees recreatives or gatherings at a habitant's home for some combination of work and play. The corn-husking corvee, for reasons which do not need elucidation, was of course the most popular of these. Of study or reading there was very little, for only a very small percentage of the people could read. Save for a few manuals of devotion there were no books in the home, and very few anywhere in the colony.

Two or three chroniclers of the day have left us pen- pictures of the French Canadians as they were before the English came. As a race, Giles Hocquart says, they were physically strong, well set-up, with plenty of stamina. They impressed La Hontan also as vigorous and untiring at anything that happened to gain their interest. They were fond of honours and sensitive to the slightest affront. This in part accounts for their tendency to litigiousness, which various intendants mentioned with regret. The habitant went to law with his neighbour at every opportunity. His attitude toward questions of public policy was one of rare self-control; but when anything touched his own personal interests he always waxed warm immediately. Pretexts for squabbling there were in plenty. With lands unfenced and cattle wandering about, with most deeds and other legal documents loosely drawn, with too much time on their hands during the winter, it is not surprising that the people were continually falling out and rushing to the nearest royal court. The intendant Raudot suggested that this propensity should be curbed, otherwise there would soon be more lawsuits than settlers in the colony.

On the whole, however, the habitant was well behaved and gave the authorities very little trouble. To the Church of his fathers he gave ungrudging devotion, attending its services and paying its tithes with exemplary care. The Church was a great deal to the habitant; it was his school, his hospital, his newspaper, his philosopher telling of things present

and things to come. From a religious point of view the whole colony was a unit. 'Thank God,' wrote one governor, 'there are no heretics here.' The Church, needing to spend no time or thought in crushing its enemies, could give all its attention to its friends. As for offences against the laws of the land these were conspicuously few. The banks of the St Lawrence, when once the redskin danger was put out of the way, were quite safe for men to live upon. The hand of justice was swift and sure, but its intervention was not very often needed. New France was as law-abiding as New England; her people were quite as submissive to their leaders in both Church and State.

The people were fond of music, and seem to have obtained great enjoyment from their rasping, home-made violins. Every parish had its fiddler. But the popular repertoire was not very extensive. The Norman airs and folk-songs of the day were easy to learn, simple and melodious. They have remained in the hearts and on the lips of all French Canada for over two centuries. The shantyman of Three Rivers still goes off to the woods chanting the *Malbrouck s'en va-t-en guerre* which his ancestors sang in the days of Blenheim and Oudenarde. Many other traits of the race have been borne to the present time with little change. Then as now the habitant was a voluble talker, a teller of great stories about his own feats and experiences. Hocquart was impressed with the scant popular regard for the truth in such things, and well he may have been. Even to-day this trait has not wholly disappeared.

Unlike his prototype, the *censitaire* of Old France, the habitant never became dispirited; even when things went wrong he retained his *bonhomie*. Taking too little thought for the morrow, he liked, as Charlevoix remarks, 'to get the fun out of his money, and scarcely anybody amused himself by hoarding it.' He was light-hearted even to frivolousness, and this gave the austere Church fathers many serious misgivings. He was courteous always,

but boastful, and regarded his race as the salt of the earth. A Norman in every bone of his body, he used, as his descendants still do, quaint Norman idioms and forms of speech. He was proud of his ancestry. Stories that went back to the days when 'twenty thousand thieves landed at Hastings' were passed along from father to son, gaining in terms of prodigious valour as they went. His versatility gained him the friendship and confidence of the Indian, an advantage which his English brother to the south was rarely able to secure.

Much of the success which marked French diplomacy with the tribes was due to this versatility. Beneath an ungainly exterior the habitant often concealed a surprising ability in certain lines of action. He was a master of blandishment when he had an end thereby to gain. Dealings which required duplicity, provided the outcome appeared to be desirable, did not rudely shock his conscience. He had no Puritan scruples in his dealings with men of another race and religion. But in many things he had a high sense of honour, and nothing roused his ire so readily as to question it. Unstable as water, however, he did not excel in tasks that took patience. He wanted to plough one day and hunt the next, so that in the long run he rarely did anything well. This spirit of independence was very pronounced. The habitant felt himself to be a free man. This is why he spurned the name 'censitaire.' As Charlevoix puts it, 'he breathed from his birth the air of liberty,' and showed it in the way he carried his head. A singular type, when all is said, and worthy of more study than it has received.

CHAPTER VI

'AD MAJOREM DEI GLORIAM'

Church and State had a common aim in early Canada. Both sought success, not for themselves, but for 'the greater glory of God.' From beginning to end, therefore, the Catholic Church was a staunch ally of the civil authorities in all things which made for real and permanent colonial progress. There were many occasions, of course, when these two powers came almost to blows, for each had its own interpretation of what constituted the colony's best interests. But historians have given too much prominence to these rather brief intervals of antagonism, and have thereby created a misleading impression. The civil and religious authorities of New France were not normally at variance. They clashed fiercely now and then, it is quite true; but during the far greater portion of two centuries they supported each other firmly and worked hand in hand.

Now the root of all trouble, when these two interests came into ill-tempered controversy, was the conduct of the *coureurs de bois*. These roving traders taught the savages all the vices of French civilization in its most degenerate days. They debauched the Indian with brandy, swindled him out of his furs, and entered into illicit relations with the women of the tribes. They managed in general to convince the aborigines that all Frenchmen were dishonest and licentious. That the representatives of the

Most Christian King should tolerate such conduct could not be regarded by the Church as anything other than plain malfeasance in office.

The Church in New France was militant, and in its vanguard of warriors was the Jesuit missionary. Members of the Society of Jesus first came to Quebec in 1625; others followed year by year and were sent off to establish their outposts of religion in the wilderness. They were men of great physical endurance and unconquerable will. The Jesuit went where no others dared to go; he often went alone, and always without armed protection.

Behold him on his way; his breviary
Which from his girdle hangs, his only shield.
That well-known habit is his panoply,
That Cross the only weapon he will wield;
By day he bears it for his staff afield,
By night it is the pillow of his bed.
No other lodging these wild woods can yield
Than Earth's hard lap, and rustling overhead
A canopy of deep and tangled boughs far spread.

It is not strange that the Jesuit father should have disliked the traders. A single visit from these rough and lawless men would undo the spiritual labour of years. How could the missionary enforce his lessons of righteousness when men of his own race so readily gave the lie to all his teachings? The missionaries accordingly complained to their superiors in poignant terms, and these in turn hurled their thunderbolts of excommunication against all who offended. But the trade was profitable, and Mammon continued, as in all ages, to retain his corps of ardent disciples. Religion and trade never became friendly in New France, nor could they ever become friendly so long as the Church stood firmly by its ancient tradition as a friend of law and order.

With agriculture, however, religion was on better terms. Men who stayed on their farms and tilled the soil might be grouped into parishes, their lands could be made to yield the tithe, their spiritual needs might readily be ministered unto. Hence it became the policy of the Church to support the civil authorities in getting lands cleared for settlement, in improving the methods of cultivation, and in strengthening the seigneurial system at every point. This support the hierarchy gave in various ways, by providing cures for outlying seigneuries, by helping to bring peasant farmers from France, by using its influence to promote early marriages, and above all by setting an example before the people in having progressive agriculture on Church lands.

Both directly and through its dependent organizations the Catholic Church became the largest single landholder of New France. As early as 1626 the Jesuits received their first grant of land, the concession of Notre-Dame des Anges, near Quebec; and from that date forward the order received at intervals large tracts in various parts of the colony. Before the close of French dominion in Canada it had acquired a dozen estates, comprising almost a million arpents of land. This was about one-eighth of the entire area given out in seigneuries. Its two largest seigneurial estates were Batiscan and Cap de la Magdelaine; but Notre-Dame des Anges and Sillery, though smaller in area, were from their closeness to Quebec of much greater value. The king appreciated the work of the Jesuits in Canada, and would gladly have contributed from the royal funds to its furtherance. But as the civil projects of the colony took a great deal of money, he was constrained, for the most part, to show his appreciation of religious enterprise by grants of land. As land was plentiful his bounty was lavish—sometimes a hundred thousand arpents at a time.

Next to the Jesuits as sharers of the royal generosity came the bishop and the Quebec seminary, with a patrimony of nearly seven hundred thousand

arpents, an accumulation which was largely the work of Francois de Laval, first bishop of Quebec and founder of the seminary. The Sulpicians had, at the time the colony passed into English hands, an estate of about a quarter of a million arpents, including the most valuable seigneurie of New France, on the island of Montreal. The Ursulines of Quebec and of Three Rivers possessed about seventy-five thousand arpents, while other orders and institutions, a half-dozen in all, had estates of varying acreage. Directly under its control the Church had thus acquired in mortmain over two million arpents, while the lay landowners of the colony had secured only about three times as much. It held about one-quarter of all the granted lands, so that its position in Canada was relatively much stronger than in France.

These lands came from the king or his colonial representatives by royal patent. They were given sometimes in *frankalmoigne* or sometimes as ordinary seigneuries. The distinction was of little account however, for when land once went into the 'dead hand' it was likely to stay there for all time. The Church and its institutions, as seigneurs of the land, granted farms to habitants on the usual terms, gave them their deeds duly executed by a notary, received their annual dues, and assumed all the responsibilities of a lay seigneur. And as a rule the Church made a good seigneur. Settlers were brought out from France, and a great deal of care was taken in selecting them. They were aided, encouraged, and supported through the trying years of pioneering. As early as 1667 Laval was able to point with pride to the fact that his seigneuries of Beaupre and Isle d'Orleans contained over eleven hundred persons—more than one-quarter of the colony's entire population. These ecclesiastical seigneuries, moreover, were among the best in point of intelligent cultivation. With funds and knowledge at its disposal, the Church was better able than the ordinary lay seigneur to provide banal mills and means of communication. These seigneuries were therefore kept in the front rank of agricultural progress, and the example which they set before the eyes of the people must have been of great value.

The seigneurial system was also strengthened by the fact that the boundaries of seigneuries and parishes were usually the same. The chief reason for this is that the parish system was not created until most of the seigneuries had been settled. There were parishes, so-termed, in the colony from the very first; but not until 1722 was the entire colony set off into parish divisions. Forty-one parishes were created in the Quebec district; thirteen in the district of Three Rivers; and twenty-eight in the region round Montreal. These eighty-two parishes were roughly coterminous with the existing seigneuries, but not always so. Some few seigneuries had six or eight parishes within their bounds. In other cases, two or three seigneuries were merged into a single great parish. In the main, however, the two units of civil and spiritual power were alike.

From this identification of the parish and seignury came some interesting results. The seigneurial church became the parish church; where no church had been provided the manor-house was commonly used as a place of worship. Not infrequently the parish cure took up his abode in the seigneur's home and the two grew to be firm friends, each aiding the other with the weight of his own special authority and influence. The whole system of neighbourhood government, as the late Abbe Casgrain once pointed out, was based upon the authority of two men, the cure and the seigneur, 'who walked side by side and extended mutual help to each other. The censitaire, who was at the same time parishioner, had his two rallying-points—the church and the manor-house. The interests of the two were identical.' From this close alliance with the parish the seigneurial system naturally derived a great deal of its strong hold upon the people, for their fidelity to the priest was reflected in loyalty to the seigneur who ranked as his chief local patron and protector.

The people of the seigneuries paid a tithe or ecclesiastical tax for the support of their parish church. In origin, as its name implies, this payment

amounted to one-tenth of the land's annual produce; but in New France the tithe was first fixed in 1663 at one-thirteenth, but in 1679 this was reduced to one twenty-sixth. At this figure it has remained to the present day. Tithes were at the outset levied on every product of the soil or of the handiwork of man; but in practice they were collected on grain crops only. When the habitants of New France began to raise flax, hemp, and tobacco some of the priests insisted that these products should yield tithes also; but the Superior Council at Quebec ruled against this claim, and the king, on appeal, confirmed the council's decision. The Church collected its dues with strictness; the cures frequently went into the fields and estimated the total crop of each farm, so that they might later judge whether any habitant had held back the Church's due portion. Tithes were usually paid at Michaelmas, everything being delivered to the cure at his own place of abode. When he lived with the seigneur the tithes and seigneurial dues were paid together. But the total of the tithes collected during any year of the old regime was not large. In 1700 they amounted in value to about five thousand livres, a sum which did not support one-tenth of the colony's body of priests. By far the larger part of the necessary funds had to be provided by generous friends of the Church in France.

Churches were erected in the different seigneuries by funds and labour secured in various ways. Sometimes the bishop obtained money from France, sometimes the seigneur provided it, sometimes the habitants collected it among themselves. More often a part of what was necessary came from each of these three sources. Except in the towns, however, the churches were not pretentious in their architecture, and rarely cost much money. Stone, timber, and other building materials were taken freely from the lands of the seigneurie, and the work of construction was usually performed by the parishioners themselves. As a result the edifices were rather ungainly as a rule, being built of rough-hewn timber. In 1681 there were only seven stone churches in all the seigneuries, and the royal officers

deplored the fact that the people did not display greater pride or taste in the architecture of their sanctuaries. Bishop Laval felt strongly that this was discreditable, and steadfastly refused to perform the ceremony of consecration in any church which had not been substantially built of stone.

Where a seigneur erected a church at his own expense it was customary to let him have the patronage, or right of naming the priest. This was an honour which the seigneurs seem to have valued highly. 'Every one here is puffed up with the greatest vanity,' wrote the intendant Duchesneau in 1681; 'there is not one but pretends to be a patron and wants the privilege of naming a cure for his lands, yet they are heavily in debt and in extreme poverty.' None of the great bishops of New France—Laval, St Vallier, or Pontbriand—had much sympathy with this seigneurial right of patronage or advowson, and each did what he could to break down the custom. In the end they succeeded; the bishop named the priest of every parish, although in many cases he sought the seigneur's counsel on such matters.

In the church of his seigneurie the lord of the manor continued, however, to have various other prerogatives. For his use a special pew was always provided, and an elaborate decree, issued in 1709, set forth precisely where this pew should be. In religious processions the seigneur was entitled to precedence over all other laymen of the parish, taking his place directly behind the cure. He was the first to receive the tokens of the day on occasions of religious festival, as for example the palms on Palm Sunday. And when he died, the seigneur was entitled to interment beneath the floor of the church, a privilege accorded only to men of worldly distinction and unblemished lives. All this recognition impressed the habitants, and they in turn gave their seigneur polite deference. Along the line of travel his carriage or carriage had the right of way, and the habitant doffed his cap in salute as the seigneur drove by. Catalogne mentioned that, despite all this, the Canadian seigneurs were not as ostentatiously given tokens of the

habitants' respect as were the seigneurs in France. But this did not mean that the relations between the two classes were any less cordial. It meant only that the clear social atmosphere of the colony had not yet become dimmed by the mists of court duplicity. The habitants of New France respected the horny-handed man in homespun whom they called their seigneur: the depth of this loyalty and respect could not fairly be measured by old-world standards.

As a seigneur of lands the Church had the right to hold courts and administer justice within the bounds of its great estates. Like most lay seigneurs it received its lands with full rights of high, middle, and low jurisdiction (*haute, moyenne, et basse justice*). In its seigneurial courts fines might be imposed or terms of imprisonment meted out. Even the death penalty might be exacted. Here was a great opportunity for abuse. A very inquisition would have been possible under the broad terms in which the king gave his grant of jurisdiction. Yet the Church in New France never to the slightest degree used its powers of civil jurisdiction to work oppression. As a matter of fact it rarely, if ever, made use of these powers at all. Troubles which arose among the habitants in the Church seigneuries were settled amicably, if possible, by the parish priest. Where the good offices of the priest did not suffice, the disputants were sent off to the nearest royal court. All this is worth comment, for in the earlier days of European feudalism the bishops and abbots held regular courts within the fiefs of the Church. And students of jurisprudence will recall that they succeeded in tincturing the old feudal customs with those principles of the canon law which all churchmen had learned and knew. While ostensibly applying crude mediaeval customs, many of these courts of the Church fiefs were virtually administering a highly developed system of jurisprudence based on the Roman law. Laval might have made history repeat itself in Canada; but he had too many other things engaging his attention.

Lay seigneurs, on the other hand, held their courts regularly. And the fact that they did so is of great historical significance, for the right of court-holding rather than the obligation of military service is the earmark which distinguishes feudalism from all other systems of land tenure. Practically every Canadian seigneur had the judicial prerogative; he could establish a court in his seigneurie, appoint its judge or judges, impose penalties upon the habitants, and put the fees or costs in his own pocket. In France this was a great source of emolument, and too many seigneurs used their courts to yield income rather than to dispense even-handed justice. But in Canada, owing to the relatively small number of suitors in the seigneuries, the system could not be made to pay its way. Some seigneurs appointed judges who held court once or twice a week. Others tried to save this expense by doing the work themselves. Behind the big table in the main room of his manor-house the seigneur sat in state and meted out justice in rough-and-ready fashion. He was supposed to administer it in true accord with the Custom of Paris; he might as well have been asked to apply the Code of Hammurabi or the Capitularies of Charlemagne. But if the seigneur did not know the law, he at least knew the disputants, and his decisions were not often wide of the eternal equities. At any rate, if a suitor was not satisfied he could appeal to the royal courts. Only minor cases were dealt with in the seigneurial courts, and the appeals were not numerous.

On the whole, despite its crudeness, the administration of seigneurial justice in New France was satisfactory enough. The habitants, as far as the records show, made no complaint. Justice was prompt and inexpensive. It discouraged chicane and common barratry. Even the sarcastic La Hontan, who had little to say in general praise of the colony and its institutions, accords the judicial system a modest tribute. 'I will not say,' he writes, 'that the Goddess of Justice is more chaste here than in France, but at any rate, if she is sold, she is sold more cheaply. In Canada we do not pass through the clutches of advocates, the talons of attorneys, and the claws of clerks. These

vermin do not as yet infest the land. Every one here pleads his own cause. Our Themis is prompt, and she does not bristle with fees, costs, and charges.' The testimony of others, though not so rhetorically expressed, is enough to prove that both royal and seigneurial courts did their work in fairly acceptable fashion.

The Norman habitant, as has already been pointed out, was by nature restive, impulsive, and quarrelsome. That he did not make every seigneurie a hotbed of petty strife was due largely to the stern hand held over him by priest and seigneur alike, but by his priest particularly. The Church in the colony never lost, as in France, the full confidence of the masses; the higher dignitaries never lost touch with the priest, nor the latter with the people. The clergy of New France did not form a privileged order, living on the fruits of other men's labour. On the contrary, they gave the colony far more than they took from it. Although paid a mere pittance, they never complained of the great physical drudgery that their work too often required. Indeed, if labourers were ever worthy of their hire, such toilers were the spiritual pioneers of France beyond the seas. No one who does not approach their aims and achievements with sympathy can ever fully understand the history of these earlier days. No one who does not appreciate the dominating place which the Church occupied in every walk of colonial life can fully realize the great help which it gave, both by its active interest and by its example, to the agricultural policy of the civil power. The Church owed much to the seigneurial system, but not more than the system owed to it.

CHAPTER VII

THE TWILIGHT OF FEUDALISM

When the fleurs-de-lis of the Bourbons fluttered down from the ramparts of Quebec on September 18, 1759, a new era in the history of Canadian feudalism began. The new British government promptly allayed the fears of the conquered people by promising that all vested rights should be respected and that 'the lords of manors' should continue in possession of all their ancient privileges. This meant that they intended to recognize and retain the entire fabric of seigneurial tenure.

Now this step has been commonly regarded as a cardinal error on the part of the new suzerains, and on the whole the critics of British policy have had the testimony of succeeding events on their side. By 1760 the seigneurial system had fully performed for the colony all the good service it was ever likely to perform. It could easily have been abolished then and there. Had that action been taken, a great many subsequent troubles would have been avoided. But in their desire to be generous the English authorities failed to do what was prudent, and the seigneurial system remained.

Many of the seigneurs, when Canada passed under British control, sold their seigneuries and went home to France. How great this hegira was can scarcely be estimated with exactness, but it is certain that the emigres included all the military and most of the civil officials, together with a great

many merchants, traders, and landowners. The colony lost those who could best afford to go; in other words, those whom it could least afford to let go. The priests, true to their traditions, stood by the colony in its hours of trial. But whatever the extent and character of the out-going, it is true that many seigneuries changed hands during the years 1763-64. Englishmen bought these lands at very low figures. Between them and the habitants there were no bonds of race, religion, language, or social sympathy. The new English seigneur looked upon his estate as an investment, and proceeded to deal with the habitants as though they were his tenantry. All this gave the seigneurial system a rude shock.

There was still another feature which caused the system to work much less smoothly after 1760 than before. The English did not retain the office of intendant. Their frame of government had no place for such an official. Yet the intendant had been the balance-wheel of the whole feudal machine in the days before the conquest. He it was who kept the seigneurial system from developing abuses; it was his praetorian power 'to order all things as may seem just and proper' that kept the seigneur's exactions within rigid bounds. The administration of New France was a government of men; that of the new regime was a government of laws. Hence it was that the British officials, although altogether well-intentioned, allowed grave wrongs to arise.

The new English judges, not unnaturally, misunderstood the seigneurial system. They stumbled readily into the error that tenure en censive was simply the old English tenure in copyhold under another name. Now the English copyholder held his land subject to the customs of the manor; his dues and services were fixed by local custom both as regards their nature and amount. What more easy, then, than to seek the local custom in Canada, and apply its rules to the decision of all controversies respecting seigneurial claims?

Unfortunately for this simple solution, there was a great and fundamental difference between these two tenures. The Canadian censitaire had a written title-deed which stated explicitly the dues and services he was bound to give his seigneur; the copyholder had nothing of the kind. The habitant, moreover, had various rights guaranteed to him by royal decrees. No custom of the manor or seignery could prevail against written contracts and statute-law. But the judges do not seem to have grasped this distinction; when cases involving disputed obligations came before them they called in notaries to establish what the local customs were, and rendered judgment accordingly. This gave the seigneur a great advantage, for the notaries usually took their side. Moreover, the new judicial system was more expensive than the old, so that when a seigneur chose to take his claims into court the habitants often let him have judgment by default rather than incur heavy costs.

During the twenty years following the conquest the externals of the seigneurial system remained unaltered; but its spirit underwent a great change. This was amply shown during the American War of Independence, when the province was invaded by the Arnold-Montgomery expeditions. In all the years that the colony had been under French dominion a single word from any seigneur was enough to summon every one of his able-bodied habitants to arms. But now, only a dozen years after the English had assumed control, the answer made by the habitant to such appeals was of a very different nature. The authorities at Quebec, having only a small body of regular troops available for the defence of Canada against the invaders, called on the seigneurs to rally the old feudal array. The proclamation was issued on June 9, 1775. Most seigneurs responded promptly and called their habitants to armed service. But the latter, for the most part, refused to come. The seigneurs threatened that their lands would be confiscated; but even this did not move the habitants to comply. A writer of the time narrates what happened in one of the seigneuries, and it is doubtless typical of what took

place in others. 'M. Deschambaud went over to his seigneurie on the Richelieu,' he tells us, 'and summoned his tenants to arms; they listened patiently to what he had to say, and then peremptorily refused to accede to his demands. At this the seigneur was foolish enough to draw his sword; whereupon the habitants gave both him and a few friends who accompanied him a severe thrashing, and sent them off vowing vengeance. Fearing retaliation, the habitants armed themselves, and to the number of several hundred prepared to attack any regular forces which might be sent against them. Through the discretion of Governor Carleton, however, who hastened to send one of his officers to disavow the action of the seigneur, and to promise the habitants that if they returned quietly to their homes they would not be molested, they were persuaded to disperse.' [Footnote: Maseres, Additional Papers concerning the Province of Quebec (1776), pp. 71 et seq.]

As the eighteenth century drew to a close it became evident that the people were getting restive under the restraints which the seigneurial system imposed. Lands had risen in value so that the lods et ventes now amounted to a considerable payment when lands changed owners. With the growth of population the banal right became very valuable to the seigneurs and an equally great inconvenience to the habitants. Many seigneurs made no attempt to provide adequate milling facilities. They gave the habitants a choice between bringing their grain to the half-broken-down windmill of the seigneurie or paying the seigneur a money fine for his permission to take their grist elsewhere. New seigneurial demands, unheard of in earlier days, were often put forth and enforced.

The grievances of the habitants were not mitigated, moreover, by the way in which the authorities of the province gave lands to the United Empire Loyalists. These exiles from the revolted seaboard colonies came by thousands during the years following the war, and they were given generous

grants of land. And these lands were not made subject to any seigneurial dues. They were given in freehold, in free and common socage. The new owners of these lands paid no annual dues and rendered no regular services to any superior authority. Their tenure seemed to the habitants to be very attractive. Hence the influx of the Loyalists gave strength to a movement for the abolition of seigneurial tenure—a movement which may be said to have had its first real beginning about 1790.

It was in that year that the solicitor-general of the province, in response to a request of the legislative council, presented a long report on the land-tenure situation. The council, after due consideration of this report and other data submitted to it, passed a series of resolutions declaring that the seigneurial system was retarding the agricultural progress of the province and that, while its immediate abolition was not practicable, steps should be taken to get rid of it gradually. But nothing came of these resolutions. The Constitutional Act of 1791 greatly complicated the situation by its provisions relating to the so-termed 'clergy reserves,' or reservations of lands for Church endowment, and it was not until 1825 that the Canada Trade and Tenures Act opened the way for a commutation of tenures whenever the seigneur and his habitants could agree. This act was permissive only. It did not apply any compulsion to the seigneurs. Very few, accordingly, took advantage of its provisions.

This was the situation when the uprising of 1837-38 took place. The seigneurial system was not a leading cause of the rebellion, but it was one of the grievances included by the habitants in their general bill of complaint. Hence, when Lord Durham came to Quebec to investigate the causes of colonial discontent, the system came in for its share of study. In his masterly Report on the Affairs of British North America he recognized that the old system had outlived its day of usefulness, and that its continuance was unwise. But Durham outlined no plan for its abolition. He

believed that if the province were given a government responsible to the masses of its own people, the problem of abolition would soon be solved. One of Durham's secretaries, Charles Buller drafted a scheme for commuting the tenures into freehold, but his plan did not find acceptance.

For nearly twenty years after Durham's investigation the question of abolishing the seigneurial tenures remained a football of Canadian politics. Legislative commissions were appointed; they made investigations; they presented reports; but none succeeded in getting any comprehensive plan of abolition on the statute-books. In 1854, however, the question was made a leading issue at the general election. A definite mandate from the people was the result, and 'An Act for the Abolition of Feudal Rights and Duties in Lower Canada' received its enactment during the same year.

The provisions of this act for changing all seigneurial tenures into freehold are long and somewhat technical. They would not interest the reader. In brief, it was arranged that the valid rights of each seigneur should be translated by special commissioners into an annual money rental, and that the habitants should pay this annual sum. The seigneur was required to pay no quit-rent to the public treasury. What he would have paid, by reason of getting his own lands into freehold, was applied pro rata to the reduction of the annual rentals payable by the habitants. It was arranged, furthermore, that any habitant might commute this yearly rental by paying his seigneur a lump sum such as would represent his rent capitalized at the rate of six per cent.

The whole undertaking was difficult and complicated. A great many perplexing questions arose, and a special court had to be created to deal with them. [Footnote: This court was constituted of four judges of the Court of the Queen's Bench and nine judges of the Superior Court of Lower Canada, as follows: Sir Louis H. La Fontaine, Chief Justice; Justices Duval,

Aylwin, and Caron of the Court of the Queen's Bench; the Hon. Edward Bowen, Chief Justice; Justices Morin, Mondelet, Vanfelson, Day, Smith, Meredith, Short, and Badgley of the Superior Court.] On the whole however, the commissioners performed their tasks carefully and without causing undue friction. Class prejudice was strong, and by most of the seigneurs the whole scheme was regarded as a high-handed piece of legislative confiscation. They opposed it bitterly from first to last. Among the habitants, however, the abolition of the old tenure was popular, for it meant, in their opinion, that every one would henceforth be a real landowner. But in the long run it signified nothing of the sort. Very few of the habitants took advantage of the provision which enabled them to pay a lump sum in lieu of an annual rental. Down to the present day the great majority of them continue to pay their rente constituée as did their fathers before them. With due adherence to ancient custom they pay it each St Martin's Day, and to the man whom they still call 'the seigneur.' Seigneur he is no longer; for the act of 1854 abolished not only the emoluments, but the honours attaching to this rank. But traditions live long in isolated communities, and the habitants of the St Lawrence valley still give, along with their annual rent, a great deal of old-time deference to the man who holds the lands upon which they live.

The twilight of European feudalism was more prolonged in French Canada than in any other land. Its prolongation was unfortunate. For several decades preceding 1854 it had failed to adjust itself to the new environment, and its continuance was an obstacle to the economic progress of Canada. Its abolition was wise—a generation or two earlier it would have been even wiser. All this is not to say, however, that the seigneurial system did not serve a highly useful purpose in its day. So long as it fitted into the needs of the colony, so long as the intendancy remained to guard the people against seigneurial avarice, the system had a great deal to be said in its behalf. It helped to make New France stronger in arms than she could have become

under any other plan of land tenure; and with states as with men self-preservation is the first law of nature.

BIBLIOGRAPHICAL NOTE

In two larger books entitled 'The Seigniorial System in Canada' (New York, Longmans, Green, and Co., 1907) and 'Documents relating to the Seigniorial Tenure in Canada' (Toronto, The Champlain Society, 1908), the writer has discussed Canadian feudalism in its technical phases. The former volume contains a full bibliography of manuscript and printed materials.

The reader who desires to know more about this interesting side of early Canadian history may also be referred to Professor George M. Wrong's 'Canadian Manor and its Seigneurs' (Toronto, 1908); Philippe-Aubert De Gaspé's 'Les anciens Canadiens' (Quebec, 1863); Professor C. W. Colby's 'Canadian Types of the Old Regime' (New York, 1908), especially chapter iv; W. P. Greenough's 'Canadian Folk Life and Folk Lore' (New York, 1897); the Abbe H. R. Casgrain's 'Paroisse Canadienne au XVIIe Siecle' (Quebec, 1880); Benjamin Sulte's articles on 'La Tenure Seigneuriale' in the 'Revue Canadienne', July-August, 1882; and Leon Gerin's paper on 'L'habitant de Saint-Justin' in the 'Proceedings and Transactions of the Royal Society of Canada', 1898, pp. 139-216. There is a short, but very interesting chapter on 'Canadian Feudalism' in Francis Parkman's 'Old Regime in Canada' (Boston, 1893), and various phases of life in New France are admirably pictured in every one of the same author's other volumes.

*** END OF THE PROJECT GUTENBERG EBOOK THE SEIGNEURS
OF OLD CANADA : A CHRONICLE OF NEW WORLD FEUDALISM

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project

Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund.

If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you ‘AS-IS’, WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.